

Oxus Acquisition Corp.
SEC Filings

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2021			
01/04/2021	SEC Form S-1	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933. Oxus Acquisition Corp, a newly formed blank check company (SPAC) incorporated as a Cayman Island exempted company for the purpose of entering into a merger, share exchange, asset acquisition, share purchase, recapitalization, reorganization or other similar business combination with one or more businesses or entities, referred to as "Target Business". This form S-1 is the Draft Registration / preliminary prospectus for the IPO of the securities issued by Oxus. Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one-half of one warrant. Each whole warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share	
19/08/2021	SEC Form S-1 (1st amendment)	Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one warrant. Each warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share, subject to adjustment as described herein. Each warrant will become exercisable 30 days after the completion of the initial business combination and will expire on the fifth anniversary of the completion of an initial business combination, or earlier upon redemption or liquidation.	
02/09/2021	Nasdaq Form 8-A 12 (b)	Registration of (i) Units, each consisting of one Class A ordinary share and one warrant, (ii) of Class A ordinary shares with par value of \$0.0001 per share, and Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of \$11.50.	
02/09/2021	SEC Notice of Effectiveness of Form S-1		
02/09/2021	Pursuant to SEC Rule 424 (b) (4)	PROSPECTUS	
02/09/2021 (reported 9 sept 2021)	SEC Form 8-K	On 8 Sept 2021 the Cie raised \$150m in a public offering. A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was placed in a trust account established for the benefit of the Company's public shareholders (the "Trust Account"), with Continental acting as trustee.	
08/09/2021	SEC Form 8-K	On September 8, 2021, Oxus Acquisition Corp., a Cayman Islands exempted company (the "Company"), consummated its initial public offering (the "Offering") of 15,000,000 units (the "Units"). The Units were sold at an offering price of \$10.00 per Unit, generating gross proceeds of \$150,000,000. Simultaneously with the consummation of the Offering, Oxus completed a private placement of an aggregate of 8,400,000 warrants (the "Private Placement Warrants") at a price of \$1.00 per Private Placement Warrant, generating gross proceeds of \$8,400,000 (the "Private Placement"). A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was deposited in a trust account established for the benefit of the Company's public shareholders. On September 9, 2021, the underwriters notified the Company of their exercise of the over-allotment option in full and purchased 2,250,000 additional Units at \$10.00 per Unit upon the closing of the over-allotment option, generating gross proceeds of \$22,500,000	

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2022			
01/06/2022	SEC-Form 8-K	Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
03/06/2022	Exhibit 24.1 to SEC-Form 8-K	Karim Zahmoul causes POA to be executed KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its true and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority; 2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and 4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and contingent compensation.
06/06/2022	SEC-Form 8-K Current Report	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the <i>Audit Committee of the BOD</i> .	
06/06/2022	Letter from HFC to Withers	"My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed."	Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.
06/06/2022	Letter from HFC to Withers	"My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."	Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.
07/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
09/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. SEC-Form 3 Files Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
17/06/2022	Yahoo Finance	OXUS Shares @ \$9.99 per Share; Current Enterprise Value of 215.36 Million	

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2023			
23/02/2023	SEC Reg FD	Business Combination Agreement. On February 24, 2023, Oxus Acquisition Corp. and Borealis Foods Inc., a corporation incorporated under the laws of Canada, jointly issued a press release announcing the execution of a business combination agreement on February 23, 2023	
03/03/2023	SEC-Form 8-K	EXTRAORDINARY GENERAL MEETING. On March 3, 2023, in connection with the Extraordinary General Meeting, Oxus filed an amendment (the "Charter Amendment") to the Company's Amended and Restated Memorandum and Articles of Association (the "Charter") with the Registrar of Companies in the Cayman Islands to (1) extend the date by which the Company must consummate its initial business combination from March 8, 2023 to December 8, 2023 , or such earlier date as determined by the Company's board of directors (the "Extended Date") and (2) provide for the right of a holder of Class B ordinary shares of the Company to convert into Class A ordinary shares on a one-for-one basis prior to the closing of a business combination at the election of such holder. The Company's shareholders approved the Charter Amendment at the Extraordinary General Meeting on March 2, 2023.	
14/08/2023	SEC-Form S-4	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933 PROXY STATEMENT AND PROSPECTUS	
13/11/2023	SEC-Form S-4 (2nd amendment)	BENEFICIAL OWNERSHIP OF DIRECTORS: The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,657,500 based on the closing price of Class A Shares of \$11.05 on the Nasdaq on October 17, 2023. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares; LOCK-UP AGREEMENTS: In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.	

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2024			
16/01/2024	SEC Proxy Statement and Prospectus	See Summary of Key Points	
07/02/2024	SEC Form 8-K	CLOSING OF BUSINESS COMBINATION: On February 7, 2024 (the "Closing Date"), Borealis Foods Inc., a corporation incorporated under the laws of Canada ("Borealis"), Oxus Acquisition Corp., a Cayman Islands exempted company ("Oxus"), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus ("Newco"), consummated the transactions (collectively, the "Transaction") contemplated by the Business Combination Agreement, dated as of February 23, 2023, EXCHANGE RATE OF EQUITY. Upon the closing of the Transaction, the following occurred: The common shares of Borealis were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) \$150,000,000 minus Borealis' Closing Net Indebtedness, as agreed to by the parties, of \$17,000,000, which equals \$133,000,000, divided by (b) \$10.00 (the "Aggregate Transaction Consideration"). Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation. As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the "Proxy Statement/Prospectus") filed by Oxus with the SEC.	
08/02/2024	NASDAQ Press Release	Borealis Foods Inc commenced trading on the Nasdaq under the ticker symbol "BRLS" on February 8, 2024.	
19/02/2024	High Court Trial/Sworn Statement of Assets ES2	The defendant swears his asset schedule on Form ES2 and assigns a value of zero to his 50,000 shares in Oxus Acquisition Corp.	Sworn Statement of Assets ES2 - see evidence before the court
22/02/2024	High Court Trial/Witness evidence	The defendant gives evidence under oath and states that his Oxus shares have no value.	
26/02/2024	High Court Trial/Closing Submissions	In her closing submissions, the respondent's counsel, Ms. Campbell KC, states: " Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares; they are of no value "	See Transcript of Evidence - page 92

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
28/02/2024	High Court Trial	Immediately after the conclusion of the trial, the claimant checks her SEC notifications and sees the regulatory filings Oxus made in February in connection with the closing transaction with Borealis. She realizes that the defendant committed perjury.	
28/02/2024	Email to Defendant's legal team	The claimant's legal team sends the following email to the other side: "Dear Valeria, we attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2. We look forward to hearing from you. Kind regards, Faye".	
3/29/2024 & 04/03/2024	Email to Defendant's legal team	The claimant's solicitors sent two follow-on emails on 29 February 2024 at 17:07, and 4 March 2024 at 12:46, but the defendant's legal team did not reply.	
06/03/2024	1st email to the judge	The claimant becomes a litigant in person due to lack of funding. She emails the judge the SEC filings and provides documentary evidence of the defendant's knowledge prior to the start of the High Court trial, including his signature on all the SEC filings as a Director of Oxus,	
07/03/2024	2nd email to the judge	The claimant sends a second email to inform the court that the defendant committed perjury. As she no longer has legal advice, she uses a Form D-11 in case the procedure requires it.	
09/04/2024	3rd email to the judge	The claimant sends a third email to the court with substantial background information on the Kazakh oligarch who controls Oxus Spac and employs the defendant. She sends a photograph the oligarch posted in his own Instagram account on 9 February 2024 celebrating the company's public listing on NASDAQ.	
19/04/2024	The judgment is handed down	The judgment makes findings which are not consistent with the evidence before the court at the trial, nor are they consistent with the transcripts of oral evidence and the closing submissions.	See Transcript of Evidence and Form ES2 sworn on 19 February 2024

Oxus Acquisition Corp.
2022

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

FORM 8-K

CURRENT REPORT

**Pursuant to Section 13 or 15(d) of the
Securities Exchange Act of 1934**

Date of report (Date of earliest event reported): **May 31, 2022**

Oxus Acquisition Corp.

(Exact name of registrant as specified in its charter)

Cayman Islands	001-40778	N/A
(State or other jurisdiction of incorporation)	(Commission File Number)	(I.R.S. Employer Identification No.)
300/26 Dostyk Avenue Almaty, Kazakhstan 050040		050020
(Address of principal executive offices)		(Zip Code)

+7(727)355-8021

(Registrant's telephone number, including area code)

Not Applicable

(Former name or former address, if changed since last report)

Check the appropriate box below if the Form 8-K is intended to simultaneously satisfy the filing obligation of the registrant under any of the following provisions:

- ☐ Written communications pursuant to Rule 425 under the Securities Act (17 CFR 230.425)
- ☐ Soliciting material pursuant to Rule 14a-12 under the Exchange Act (17 CFR 240.14a-12)
- ☐ Pre-commencement communications pursuant to Rule 14d-2(b) under the Exchange Act (17 CFR 240.14d-2(b))
- ☐ Pre-commencement communications pursuant to Rule 13e-4(c) under the Exchange Act (17 CFR 240.13e-4(c))

Securities registered pursuant to Section 12(b) of the Act:

Title of each class	Trading Symbol(s)	Name of each exchange on which registered
Units, each consisting of one class A ordinary share and one Warrant	OXUSU	The Nasdaq Stock Market LLC
Class A ordinary shares, par value \$0.0001 per share	OXUS	The Nasdaq Stock Market LLC
Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of \$11.50	OXUSW	The Nasdaq Stock Market LLC

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933 (§230.405 of this chapter) or Rule 12b-2 of the Securities Exchange Act of 1934 (§240.12b-2 of this chapter).

Emerging growth company ☒

008

If an emerging growth company, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 13(a) of the Exchange Act. ☐

Item 5.02 Departure of Directors or Certain Officers; Election of Directors; Appointment of Certain Officers; Compensatory Arrangements of Certain Officers.

On May 31, 2022, Sergei Ivashkovsky tendered his resignation as a director of the board of directors of Oxus Acquisition Corp. (the “Company”) effective immediately. Mr. Ivashkovsky’s resignation is not based on any disagreement with the Company on any matter relating to the Company’s operations, policies or practice.

In addition, on June 1, 2022, the Board of Directors appointed Karim Zahmoul to fill the vacancy created by Mr. Ivashkovsky’s resignation, effective immediately. Mr. Zahmoul will serve on the audit committee of the Company’s Board of Directors.

Karim Zahmoul, 56, has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February, 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm’s international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College. The Company believes that Mr. Zahmoul’s qualifications to serve on our Board of Directors include his extensive experience in investment and financial industry.

SIGNATURE

Pursuant to the requirements of the Securities Exchange Act of 1934, the registrant has duly caused this report to be signed on its behalf by the undersigned hereunto duly authorized.

OXUS ACQUISITION CORP.By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Chief Executive Officer

Date: June 6, 2022

EX-24.1 2 ea161404ex24-1_oxusacq.htm POWER OF ATTORNEY

Exhibit 24.1**Power of Attorney**

KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I. Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its true and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to:

1. Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority;
2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC;
3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and
4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.

The undersigned acknowledges that:

1. this Power of Attorney authorizes, but does not require, such attorneys-in-fact to act in their discretion on information provided to such attorneys-in-fact without independent verification of such information;
2. any documents prepared and/or executed by such attorneys-in-fact on behalf of any of the undersigned pursuant to this Power of Attorney will be in such form and will contain such information and disclosure as such attorney-in-fact, in his or her discretion, deems necessary or desirable;
3. the attorneys-in-fact do not assume (a) any liability for responsibility to comply with the requirements of the Exchange Act for any of the undersigned, (b) any liability for any failure to comply with such requirements for any of the undersigned, or (c) any obligation or liability for profit disgorgement under Section 16(b) of the Exchange Act for any of the undersigned; and
4. this Power of Attorney does not relieve any of the undersigned from responsibility for compliance with the undersigned's obligations under the Exchange Act, including without limitation the reporting requirements under Sections 13 and 16 of the Exchange Act.

The undersigned hereby gives and grants the foregoing attorneys-in-fact full power and authority to do and perform all and every act and thing whatsoever requisite, necessary or appropriate to be done in and about the foregoing matters as fully to all intents and purposes as the undersigned might or could do if present, with full power of substitution and revocation, hereby ratifying all that such attorney-in-fact, or such attorney-in-fact's substitute or substitutes, of, for and on behalf of the undersigned, shall lawfully do or cause to be done by virtue of this Power of Attorney. This Power of Attorney shall remain in full force and effect until revoked by the undersigned in a signed writing delivered to such attorneys-in-fact.

[Signature page follows]

IN WITNESS WHEREOF, the undersigned has caused this Power of Attorney to be executed as of this 3rd day of June, 2022.

/s/ Karim Zahmoul

Name: Karim Zahmoul

SEC Form 3

FORM 3**UNITED STATES SECURITIES AND EXCHANGE
COMMISSION**

Washington, D.C. 20549

**INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF
SECURITIES****OMB APPROVAL**

OMB Number: 3235-0104
 Estimated average burden
 hours per response: 0.5

Filed pursuant to Section 16(a) of the Securities Exchange Act of 1934
 or Section 30(h) of the Investment Company Act of 1940

1. Name and Address of Reporting Person* <u>Zahmoul Karim Nouredine</u> (Last) (First) (Middle) <u>C/O OXUS ACQUISITION CORP.</u> <u>300/26 DOSTYK AVENUE</u> (Street) <u>ALMATY 1P 050020</u> (City) (State) (Zip)	2. Date of Event Requiring Statement (Month/Day/Year) <u>06/07/2022</u>	3. Issuer Name and Ticker or Trading Symbol <u>Oxus Acquisition Corp. [OXUS]</u> 4. Relationship of Reporting Person(s) to Issuer (Check all applicable) ☒ Director 10% Owner Officer (give title below) Other (specify below) 5. If Amendment, Date of Original Filed (Month/Day/Year) 6. Individual or Joint/Group Filing (Check Applicable Line) ☒ Form filed by One Reporting Person Form filed by More than One Reporting Person	
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Table I - Non-Derivative Securities Beneficially Owned

1. Title of Security (Instr. 4)	2. Amount of Securities Beneficially Owned (Instr. 4)	3. Ownership Form: Direct (D) or Indirect (I) (Instr. 5)	4. Nature of Indirect Beneficial Ownership (Instr. 5)
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**Table II - Derivative Securities Beneficially Owned
(e.g., puts, calls, warrants, options, convertible securities)**

1. Title of Derivative Security (Instr. 4)	2. Date Exercisable and Expiration Date (Month/Day/Year)		3. Title and Amount of Securities Underlying Derivative Security (Instr. 4)		4. Conversion or Exercise Price of Derivative Security	5. Ownership Form: Direct (D) or Indirect (I) (Instr. 5)	6. Nature of Indirect Beneficial Ownership (Instr. 5)
	Date Exercisable	Expiration Date	Title	Amount or Number of Shares			
Class B ordinary shares	(1)	(1)	Class A ordinary shares	50,000	(1)	D	

Explanation of Responses:

1. The shares of Class B ordinary shares have no expiration date and will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination, or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1 (File No. 333-258183).

Remarks:

See Exhibit 24.1 - Power of Attorney

/s/ Yuta N. Delarck,
Attorney-in-Fact

06/09/2022

** Signature of Reporting Person

Date

Reminder: Report on a separate line for each class of securities beneficially owned directly or indirectly.

* If the form is filed by more than one reporting person, see Instruction 5 (b)(v).

** Intentional misstatements or omissions of facts constitute Federal Criminal Violations See 18 U.S.C. 1001 and 15 U.S.C. 78ff(a).

Note: File three copies of this Form, one of which must be manually signed. If space is insufficient, see Instruction 6 for procedure.

Persons who respond to the collection of information contained in this form are not required to respond unless the form displays a currently valid OMB Number.



Your ref: dcp/slf/ln89320/0001/mqc

Our ref: CP.ZAH003.I

Kate Landells
Withers
DX 160 London/Chancery Lane

6 June 2022

By email only: Katharine.Landells@withersworldwide.com

Dear Kate

Nadia Zahmoul and Karim Zahmoul – finances

My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed.

My client will not receive income from the role **but he may receive shares in the company** subject to its performance – full details are yet to be finalised but will be confirmed when they are.

Yours sincerely

CAROLINE PARK

Our ref: ksl/ln89320/0001/clw
Your ref:

20 Old Bailey, London EC4M 7AN
t: +44 20 7597 6000
f: +44 20 7597 6543
DX 160 London/Chancery Lane
www.withersworldwide.com

29 June 2022

Ms C Park
Hughes Fowler Carruthers

By email only: c.park@hfclaw.com

Dear Caroline

Nadia Zahmoul and Karim Zahmoul - Finances

I wrote to you on 22 June 2022 with a number of questions in relation to your client's disclosure. His response was to write to my client with the subject heading 'Your lawyers are wasting money' and to attach a link to a paper in relation to SPACs. It is characteristic of him to allege, in the face of being asked perfectly legitimate questions, that my client is running up costs or in some way not justified in posing them.

My client wishes to have no further direct communication with your client, save in so far as is necessary in relation to our clients' daughters. She finds his correspondence oppressive, and overbearing and his vitriol towards our client, including in correspondence with the girls' school, is offensive. She does not trust your client, and has good reason not to given the way he has engaged in these proceedings to date.

Yours sincerely



Katharine Landells
on behalf of Withers LLP

direct: +44 20 7597 6188
e-mail: katharine.landells@withersworldwide.com

Withers LLP is a limited liability partnership registered in England and Wales with registered number OC301149 and is authorised and regulated by the Solicitors Regulation Authority with registered number 352314. A full list of members' names and professional qualifications may be inspected at our registered office, 20 Old Bailey, London EC4M 7AN.

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Withersworldwide
London Cambridge Geneva Milan Padua
Hong Kong Singapore Tokyo British Virgin Islands
New York Greenwich New Haven San Francisco
Los Angeles Rancho Santa Fe San Diego

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Date	Document Type	Description of Document Content	Comments
01/06/2022	SEC-Form 8 Current Report	Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
03/06/2022	Exhibit 24.1 to SEC-Form 8	Karim Zahmoul causes POA to be executed KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its true and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority; 2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and 4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and contingent compensation.
06/06/2022	SEC-Form 8 Current Report	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD .	
06/06/2022	Letter from HFC to Withers	<i>My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed.'</i>	Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.
06/06/2022	Letter from HFC to Withers	<i>My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are.'</i>	Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.
07/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
09/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	SEC-Form 3 Files Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
17/06/2022	Yahoo Finance	OXUS Shares @ \$9.99 per Share; Current Enterprise Value of 215.36 Million	Increase in Net Worth of \$500,000 despite claim that he "may receive shares in the company subject to its performance." This is not a performance bonus, this is a joining bonus and it is not contingent on performance benchmarks.

ZAHMOUL

Position Statement – Applicant Wife – PTR – 13th July 2022

1. Can the Husband be believed by his own *fiat* or ought his disclosure to be treated with appropriate scepticism? Will his Form E be found to belong in the fiction or the non-fiction section of the judicial library? Even he seemed to acknowledge that the Curious Case of the Topanga Valuation (with its unexpected twist being that an asset valuation of \$75,000 was in fact worth \$7 million [e261]) did not deserve a sequel. Thus, he acknowledged [e389] “...that my own stress in trying to manage this process has meant that I have not always managed everything well and I accept that with hindsight, there are some matters I would have done differently in these proceedings, principally in respect of the timing of the disclosure relating to the SPV, Topanga Canyon Holdings LLC...”, and apologised [e399] for the fact that there had been “...a few accidental omissions” in relation to providing in his replies to questionnaire, information about investments identified in his Form E
2. Fair to say that anyone reading that would have been hopeful for better things to come from him (“*With the benefit of hindsight I would have approached it very differently*” he observed penitentially [e413]). Indeed, with the clarity offered by such an epiphany one might have thought that this Husband would have been anxious to avoid any repetition of the mischief caused by his deficient Topanga disclosure. But some writers have only one genre. On the 6th June H’s solicitors wrote to W’s solicitors and said (in a letter not in the bundle):-

“My client has been offered a directorship role in a SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed. My client will not receive income from the role but he **may** receive shares in the company subject to its performance – **full details are yet to be finalised** but will be confirmed when they are” [emphasis added]

3. This – unbeknownst to them – was not true in multiple respects. In fact, as that company’s filings make clear, by the time that letter was written
 - a) He had been appointed as a director (on the 1st June 2022)¹;

¹ [Oxus Acquisition Corp. Form 8-K Current Report Filed 2022-06-06 \(secdatabase.com\)](https://www.sec.gov/edgar/data/1718118/000171811822000006/oxus.htm)

- b) He had (on 3rd June 2022), executed a Power of Attorney (Filed as Exhibit 24.1 to Form E3 with the SEC²) which facilitated the filing of SEC-Form 3 on 7th June 2022 disclosing his ownership of 50,000 Class B shares³ which would, automatically convert into A shares on the acquisition of a business by the SPAC;
 - c) Those A shares in the SPAC are valued at \$10 (and are quoted on the NASDAQ).
4. And so not for the first time in these proceedings the Wife's industry has revealed what the Husband did not; that despite his presentation of a *possible* equity stake hedged round by conditionality and performance, the B shares were his – and would convert to A shares on the acquisition by the SPASC of a business whereupon they would be worth – at today's stock price – \$500,000. His explanation for the misleading manner in which his involvement in Oxus was portrayed is awaited (look out for mention of *illiquidity*, *uncertainty*, *tradability* – and then remember that he said he may receive equity at a time when not only did he already have B shares, but he knew that its value on current figures, would be \$500,000). Will provide in separate note overnight addressing HFC's updating disclosures of 8 July 2022 re. Oxus B shares and their conversion value. Oxus filed an S-1 Registration Statement and the argument put forth by H in updating disclosures re. Oxus B shares is deficient and misleading.
5. This casual attitude to the provision of accurate disclosure in a case where suspicion is already high, simply is not good enough; and alongside the complexities of Husband's the crypto-currency trading, it should inform how the litigation is progressed.

Issues to be resolved for today

6. The Court will be well familiar with the background to this case, it having last been before this tribunal on the 31st May 2022. The Order made when it was last before this is at [e225]

Tax

² [Zahmoul Karim Noureddine 2022 Security Ownership Statement Form 3](#)

³ [SEC FORM 3](#)

7. The Court envisaged that [e225] by 7 June 2022 the respondent would send a letter summarising his position on the tax figures (to include his proposed time line and grounds for being granted residency in any country other than Portugal if that be part of his position). This has not happened and the Court and the Wife continue to deal in hypotheticals. As Withers explained in their letter of the 29th June [e467]

Your client must provide a comprehensive memorandum in relation to this proposal, to include a detailed explanation of the mechanics and economics of the transaction as well as the timeline. Your client's proposal should be prepared by a US financial adviser with input from a Portuguese tax adviser and should include an opinion from an immigration lawyer detailing the residency process and the timeline for becoming a US tax-payer. In addition to the description of the transaction and the terms and conditions, the memorandum should also include details of the risk factors and should attempt to quantify the potential risk to my client of this proposal.

8. The Wife has set out why she cannot agree with the Husband's figures (either by dint of uncertainty as to whether he will be able to achieve US tax residency or because he has not shown his workings or both. Consideration needs to be given to the way forward. The mechanics of H's proposed two-step settlement must be described in writing and with computations. It is not enough to say 'we will settle the divorce in November 2022 and then do the US real estate transfers in November 2023 when I have my US residency'. The reason this is Utopian is because it is impossible to quantify the risk and the valuations in advance. At time T zero, we reach a financial settlement and divide the assets. The real estate is valued at that time, let's say 24 November 2022. The division of assets is based on the value of the real estate at time T zero, the built-in capital-gains tax, transfer tax, the impact of Frost St property on W tax liability in the UK, all the metrics are defined at time T zero. One year later, H has become a US tax-resident and wants to proceed with the transfer. Everything has changed. Real estate is driven by a variety of factors, including US Federal Reserve Rate, interest rates, mortgage rates, inflation rate and GDP growth. It is also driven by market factors, demand, supply, demographics, work trends, real estate taxes, estate taxes and broader regulatory measures. It is driven by Acts of God, such as the Pandemic. W convinced H to buy the second property not as a 'trick' but because she had rightly predicted that the pandemic would drive the wealthy from both East and West Coasts to seek a safe haven for themselves and their families, a place where a hedge fund owner can ski, be mask-free and work as usual, away from germs and other nuisances. The property

purchased in September 2020 at \$4.4m was recently appraised at \$7.2m, a 64% increase in two years. This was not to trick the H; this was a good call. Now one year after the settlement the entire landscape has changed. The values agreed at the settlement are no longer current. Prices, rates, the market, the economy, everything has changed. The settlement at time T1 in 2023 cannot be predicted at T zero in 2022. There is not a single financial institution who could price this risk, which involves too many drivers, including Acts of God. What H is proposing is two settlements, but please do not tell him. He is just testing us, throwing in an absurdity and seeing how we respond to it. He has nothing to lose. The best answer is to ask him to provide a step-by-step memorandum for the proposed transaction, including a comprehensive description of the economics of the deal, the risks, the mechanics, the pricing at T zero and at T 1 and to please have the memo produced by a certified Financial Advisor in the US. Then and only then will I consider this outlandish proposal and will submit to my own Financial Advisor. Please note that such transaction, if H can structure it and execute it must include a compensation to W for the time in which she is not a full owner of her properties (time value of money). It must also include extensive guarantees that H will cover every single risk imaginable during the period T zero-T 1. I know this is absolutely impossible and I know H is throwing it and pretending he is serious because he has no downside. We have spent enough time on this. Please ask for formal transaction memorandum prepared by a Financial Consultant as well as Immigration Opinion. These are the minimum documents W requires to entertain the Utopian idea.

Disclosure

9. A schedule of deficiencies and further questions has been prepared. The deficiencies represent orders already made by the Court with which there must be compliance. The reasons for the further questions are identified in the text of the questionnaire. Given the Husband's flawed approach to disclosure to date, these questions must be answered if there is to be any hope of an accurate quantification of his resources.
10. A response to this questionnaire has just been received (this morning – 12th July). That response will need to be considered and will inform whether an Order is sought for the Schedule of deficiencies and further questions to be answered.

11. As first blush, the most glaring deficiencies which must be addressed immediately are the H's comprehensive tax returns for the years 2019, 2020, and 2021 including crypto-asset reporting for the US (IRS) and the UK (HMRC) jurisdictions. The H's comment on the schedule of deficiencies that 'H has provided all tax returns required in these proceedings including further returns with updating disclosures' is not acceptable. W requires and is entitled to full tax returns, not partial ones. It is not H who chooses which forms he will send with his IRS returns; his duty is to provide the comprehensive returns. If H refuses to provide full and comprehensive tax returns (including crypto assets) for the US and the UK for 2019, 2020, and 2021 please include in Court Order to obtain directly from the IRS and HMRC.
12. W has also asked why H commits perjury in all his IRS returns from 2004 through 2018. H did not provide full returns for 2019, 2020, and 2021. He denies having been a Green Card holder and he denies having been a US resident. Both are serious misrepresentations and W has asked several times why the perjury, but H has yet to provide an answer.
- 13.

Listing before a High Court Judge⁴

14. The Wife made this application on the 18th February 2022. Nothing that has happened since has weakened the force of the application. Nobody involved in this case could truthfully say other than this is a piece of litigation of rare complexity (and not just because of the indecipherability of the crypto space to anyone other than the Husband, and the expert).
15. The criteria for allocation within the Family Court to a Judge of High Court level are set out in the Statement of Mr. Justice Mostyn of the 1st February 2016

Issue	Relevance to this case
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⁴ If the case has been transferred to High Court Judge level by a district or circuit judge sitting in the Family Court on circuit (other than the South-Eastern Circuit) the order for transfer, together with available dates of counsel for the next hearing, must be emailed to the relevant FDLJ (c/o his or her clerk) who will determine the allocated judge.

The overall net assets exceed £15m; and/or the overall net earned annual income exceeds £1m.	Yes. The assets exceeded £15 million on the disclosed Form E assets – subsequently asset fluctuation has reduced the disclosed resource but the Wife alleges non-disclosure so the disclosed resource is not the key metric
There is a serious case advanced of non-disclosure of assets.	Yes. The Wife alleges non-disclosure (evidenced in relation to Topanga (see [e374-375]) – alleged [with a good <i>prima facie</i> case] in relation <i>inter alia</i> , to the crypto assets as well as in relation to the Husband's involvement with Cornish Lithium [e380], Bitwyre ⁵ [e380-382], Ambulanz ⁶ [e384], Tyfone [e386] and a crypto fund start up [e385]). The novelty and evident <i>complexity</i> of this asset class, the complexity of the expert evidence, the scope for dispute in relation to that expert evidence and the scope of non-disclosure alleged, all justify the allocation of this case to a Judge of High Court level. The particular nature of the cryptocurrency holdings in this case and the issues which are likely arise in relation to them are highly complex, and do

⁵ The shares were priced at **\$0.001129** in round three funding (in which H participated); in round four \$4,000,000 pre-money (i.e. \$3.89 million + \$110k raised) values 886,000,000 original common stock at \$0.004391 per share plus 25,053,985 new shares issued – a rise of 289%; the same maths produces a rise of 1,053% by funding round 6

⁶ In November 2016, the Husband emailed [199] the Wife a business plan in respect of Ambulnz (an Uber type enterprise in the healthcare space), a business in respect of which he told her he was considering investing with another collaborator – Mike Deeg. Thereafter [C138] the Wife says (a) that the Husband made a capital contribution of \$50,000 to Vast Ventures Healthcare LLC (a special purpose vehicle set up for the sole purpose of investing in Ambulnz) (b) that he received a membership in the LLC (c) that the investment was arranged by Nikhil Kalghati (a friend of the Husband and Mike Deeg who also invested) who had also arranged the Topanga investment (d) that he recorded and shared (via Google Drive) details of this investment with her in an Excel spreadsheet. In March 2021, Ambulnz announced a merger with a Special Purpose Acquisition Company (Motion Acquisition Corp.). The merger completed on 5th November 2021 and Ambulnz became DocGo. It began trading on the NASDAQ on 8th November 2021 under the ticker symbol DCGO. Its 2021 4th quarter results, announced on 29th January 2021, showed a 246% increase over the corresponding quarter in 2020 whilst 2021 showed a 224% increase in turnover over 2020. The Husband has produced an email chain from 2017 which sets out his wish to invest in Ambulnz and the potential obstacles presented by the fact that he is not a US citizen. Those emails conclude with the invitation "...can you give me a quick call at +1-508-740-9128 and we can sort this out asap". As to what happened next, nobody – save for the Husband – knows.

	render the proceedings more suitable for determination by a High Court Judge. W relies amongst other things on: (a) the extensive and historic nature of H's admitted cryptocurrency holdings; (b) the fact that H's cryptocurrency holdings were stored in a variety of manners including on exchanges and in self-custodial wallets, making the process of identifying H's holdings and transactions so much more difficult; (c) the fact that Mr Pinto has already recognised that information from the cryptocurrency exchanges would assist in uncovering the extent of H's holdings, going as far to say that "<i>Binance will need to be approached</i>" in relation to two transactions (see e.g. [e500] and [e516]) (d) this may in turn require applications for disclosure from third-parties inside (and potentially outside) the jurisdiction; (e) the fact that H appears to have been involved in transactions in which "<i>peel chains</i>" have been used (see [e510]), which can suggest that a transferor is seeking to disguise the transfer; (f) the fact that H has been involved in cryptocurrency mining, which gives rise to its own issues as to the extent to which H has been earning cryptocurrency and where it has been deposited; (g) the fact that Mr Pinto has already concluded that there are "<i>wallets of interest</i>" and that H's explanations on certain issues to do not stand up to "<i>analysis</i>", and further that Mr Pinto was unable to identify the source of funds for numerous transactions, all of which are likely to justify the Court making further orders to uncover the true extent of H's holdings.
Substantial assets are held offshore either directly or through the medium of trust or corporate entities and there	UK-based assets are only 2.7% of total gross assets (excluding Pension Funds) Real estate property (Tunisia, South of France, Portugal,

may be issues as to the enforceability of any award	Panama, USA [Texas, New York & Wyoming⁷]), private equity & other shareholdings in private companies (various jurisdictions inc. Panama, Lichtenstein, USA, Ethiopia, Argentina, Kazakhstan, Indonesia), publicly traded equity (USA) and pension resources (USA & Jersey)⁸ are all held offshore (USA, Jersey, Tunisia⁹) The corollary of this is the complexity of the tax evidence on distribution of the assets (to be calculated by reference to UK, US and Portuguese tax rules)
Substantial assets are held in cryptocurrency in the US, as well as Asia, Indonesia, Seychelles, Cayman Islands, Panama ...	H cryptocurrency activities are at the level of complexity of an institutional player. H seems to be making markets and is engaged in derivative products, smart contracts, mining, trading and there is clear evidence of trading at a large scale, revenue generating activities, trading strategies (paired trading), etc... In volume and in complexity H cryptocurrency dealings are on par with what we would expect of an institutional market participant and market maker. The complexity is further compounded by the skeletal disclosures which arrive drip by drip and are far from sufficient. H has only disclosed what he is prepared to disclose to the tax authorities, maybe even less as he has not provided any of the tax returns for 2019, 2020, and 2021. These should in theory include crypto assets as H is preparing to bring to the surface part of the crypto business to avoid tax audits and regulatory scrutiny. H cryptocurrency asset revenue generating activities,

⁷ Units x 4 at Frost St, New York; 3100 & 3093 West Arrowhead Road, Wyoming; 189 Litchfield Lane, Texas; Residence Zayzafoune, Tunis; 308D L'Estivaliere, Vallauris, France

⁸ USA (Deutsche Bank and Goldman Sachs) and Jersey (Barclays Capital)

⁹ NourZa Power Sarl

	trading (including bot trading), mining, DeFi etc.. requires specialized knowledge.
Substantial assets are held through the medium of unquoted corporate entities and detailed expert valuation evidence will be required	Substantial assets <i>are</i> held through the medium of unquoted corporate entities, but valuation is not thought necessary if the equity in the entities are divided equally
A serious, carefully considered and potentially influential argument is being advanced of (a) compensation, (b) non-matrimonial property, or (c) conduct.	The issue of conduct is live – the Wife accuses the Husband of non-disclosure, assets held under third parties’ names (Ambulnz), misrepresentation to the IRS and £1m in litigation fees caused by H in his attempt to hide activities which may have do not have full approval of the regulators; each party accuses the other of litigation misconduct
There are serious, substantial third party claims to the assets otherwise subject to the dispositive powers of the court	The Husband asserts that 50% of his shareholding in Mint Green [CoinShares] [e380] is held on behalf of Marsha Kutkevitch (a director of EMViya). The Husband asserts that Mr. Sal Gargano invested in Chia mining equipment, this is extremely unlikely. Miss Molina runs an escort business in Dubai and London. By her own admission in her publicly available YouTube channel, she claims H is the ‘Mastermind’ behind the business and he helped her with the book-keeping. H started invoicing her clients in Bitcoins and used these crypto addresses for some of his own activities. Miss Molina is a person on interest in crypto and is a third party who parks assets under her name for the benefit of H. Other third-party collaborators include Mike Deeg, of course, but also Mr. and Mrs. Gargano, Dendy Suhubdi, CEO of Bitwyre,
There is a serious, carefully considered and potentially influential issue as to the effect of a nuptial agreement.	N/A

The application involves a novel and important point of law	N/A
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Imerman

16. This comprised (a) the laptop H gave his daughter in secret of W's knowledge to watch movies, (b) the One Touch device containing a backup of the laptop data and (c) a hard drive. Review by his solicitors of (a)-(c) was paused by agreement [letter 20th May 2021], in advance of the FDR (and without prejudice to the right to call for that review to be resumed). It must¹⁰ now be resumed – In light of previous searches undertaken by H solicitors in the course of these proceedings, W would like an independent party to conduct the review of the Imerman exercise. The silver lining of undertaking the Imerman exercise at this stage in the proceedings, 18 months after the First Hearing, is that it will be very narrow and focused exercise, informed by the quasi-institutional sophistication of H's cryptocurrency trading activities, the non-disclosures, and the pattern of disclosures vs non-disclosures. This is an essential exercise to obtain information H is not willing to disclose in the most cost-effective manner possible. Indeed, had W's request for a Cryptocurrency expert at the FDA been granted, a significant part of the £1m legal fees incurred to date may have been avoided. This ought not to be controversial as (a) it represents the precise basis on which the documents were returned¹¹ and (b) thereafter it was confirmed that this agreement was being implemented¹² by the Husband's solicitors.

The Another Day report on Crypto

¹⁰ "The husband's solicitor, who owes a high duty to the court, will read them and disclose those of them that are both admissible and relevant to the wife's claim, pursuant to the husband's duty of full and frank disclosure. If before that exercise has taken place the husband's solicitor is dis-instructed the solicitor must retain those documents pending a further order of the court." *UL v BK* [2013] EWHC 1735 (Fam) paragraph 56 (iii)

¹¹ "Dealing with practical matters, I confirm that everything collected will come directly to my firm in the first instance and the laptop and USB stick will be held by us. We will of course comply with our obligations to review the documents and provide anything of relevance." *HFC to Withers 9/4/21*

¹² "Quite properly, we are undertaking the review. I confirm that the only items which have been passed to my client are his Helium hotspots and his briefcase and it is frankly offensive to be asked repeatedly to confirm that we are adhering to our professional responsibilities in terms of review and disclosure, especially as this has already been confirmed. There are c.1500 pages of hard copy documents, plus the hard drive and computer. This process is well underway and indeed, my Associate spent a large part of his weekend reviewing the material." *HFC to Withers 26/4/21*

17. On 30 June 2022, the Single Joint Expert (“Mr Pinto”) instructed by the parties to investigate H’s cryptocurrency holdings produced his report (“the Pinto Report”) [e483]. In the process of producing his report, Mr Pinto asked H various questions and sought further information from him.
18. The Pinto Report establishes that W’s longstanding concerns in relation to H’s cryptocurrency holdings are well-founded. Not only does Mr Pinto reach the view that certain of H’s explanations in relation to his cryptocurrency activities were not supported by “*analysis*” of the documents, his opinion is that there are cryptocurrency “*wallets that have a significant amount flowing through them*” such that they are “*of interest*”, and recommends that further investigations be undertaken.
19. Beyond that overall view, Mr Pinto was unable to identify the source of funds for very many of the transactions disclosed by H, in particular what he refers to as Transactions 2, 3, 11, 12, 14 and 15, often due to deficiencies in the information received from H. In many cases, Mr Pinto suggests that in order to rectify these deficiencies third-party exchanges now must be approached to provide further information.
20. Notwithstanding those conclusions, W has concerns in relation to the Pinto Report, including as to: (i) whether the Pinto Report does in fact provide a “*summary of all of [H]’s holdings, activities and dealing*” as per the Letter of Instruction [e472]; (ii) whether Mr Pinto is even able to provide that summary on the basis of the materials which he has been provided with, and H’s answers to his questions; (iii) whether Mr Pinto has addressed all of the relevant materials (for example, the Pinto Report does not contain any discussion of the Multibit Wallet, through which very significant numbers of Bitcoin flowed and which links to several exchanges and wallets which are critical to the overall picture) and time periods; and (iv) what the next steps are in order to verify the areas of uncertainty identified by Mr Pinto.
21. In the first instance, W has raised a number of Part 25 questions [e528] in order to try and clarify various matters in the Pinto Report. Mr Pinto has indicated that he will be producing some form of supplemental report. W will consider the appropriate next steps in the light of any answers received to the Part 25 questions.
22. W does however lay down a marker now in relation to one particular issue, namely H’s US tax return for the year 2020. In that return:

- a. H declared that he acquired XMR (the cryptocurrency ‘Monero’) in 2019. He further declared that he sold 20 XMR in September 2020 and that he retained 10 XMR at the end of 2020. However, there is no buying or selling activity of XMR on any of the exchange accounts which he has disclosed, nor has any XMR wallet been disclosed.
 - b. H declared that he acquired XRP (the cryptocurrency ‘Ripple’) in 2019. He further declared that he sold 4000 XRP in August 2020 and that he retained 1000 XRP at the end of 2020. However, there is no buying or selling activity of XRP on any of the exchange accounts which he has disclosed, nor has any XRP wallet been disclosed.
 - c. H declared that he mined 4000 of the cryptocurrency Dogecoin in 2020 and sold half of that later in 2020. Whilst it is accepted the value of Dogecoin is minimal, the accounts and wallets which show this activity have not been disclosed.
 - d. H declared that he mined 2 LTC (the cryptocurrency ‘Litecoin’) in 2020 and retained this at the end of 2020. However, none of the exchange accounts which he has disclosed have any LTC deposit activity nor has H disclosed an LTC wallet.
23. These are just examples of an extensive list of issues which now exist in relation to H’s stated position. Assuming that H has not falsely overreported his holdings to the US authorities, there does appear to be very significant non-disclosure of assets. A rigorous process, including a review of the Immerman documents, is required to get to the bottom of H’s cryptocurrency assets.

Brent Molyneux QC
Sam Goodman

12th July 2022

Oxus Acquisition Corp.
2023



Source: Oxus Capital

April 12, 2023 06:30 ET

Oxus Capital, the promoters of the first Central Asian SPAC, to launch new \$200 million Visionary Fund to drive impact investment globally

ALMATY, Kazakhstan and NEW YORK, April 12, 2023 (GLOBE NEWSWIRE) -- Oxus Capital, the pioneering investment company driving Central Asia's first SPAC, unveiled today plans to launch a new visionary fund worth \$200 million, and will start raising capital in the incoming weeks.

The Oxus Visionary fund will be aimed to promote a greener and more equitable planet through impactful investments that disrupt traditional practices. It will prioritize backing innovative companies focused on sustainability and a fairer world, with a special emphasis on renewable energies, clean technologies, climate-smart agriculture, ethical supply chains, and food tech.

The vehicle is expected to be fully operational by 2024.

Oxus Capital already made history as the originator of the first Central Asian SPAC, Nasdaq-listed Oxus Acquisition Corp. ([NASDAQ:OXUS](#)), which raised \$172.5 million in 2021. It recently announced a Business Combination Agreement with Borealis Foods Inc., an innovative food technology company that has developed a high-quality, affordable, sustainable, and highly nutritious range of plant-based, ready-to-eat meals, sold in the U.S. and Canada.

The transaction valued Borealis at an equity value of \$150 million and is expected to close during the third quarter of 2023.

Oxus Capital is led by Kanat Mynzhanov and Askar Mametov. With headquarters in Almaty and partners in New York, London, Dubai, and New Delhi, the firm is well-positioned to showcase Central Asia's untapped potential in the global markets.

By focusing on impact investments that align with the United Nations' Sustainable Development Goals, Oxus Capital aims to create a lasting, positive impact on its region of origin and beyond. "We believe in investing in people first, so each person can contribute significantly to solving global challenges," said Mynzhanov.

Both Mynzhanov and Mametov have two decades of experience in the world of investment management and in large global corporations.

After years of working in the investment unit of blue chip corporations, Mynzhanov successfully launched Bellprescot Prime Fund in 2016, participated in private equity deals in fintech and

mobility industries, and led relevant projects in metals and mining, rare metals, and alternative energy. At the moment, he also serves as the CEO of Oxus Acquisition Corp.

Mametov was formerly the CFO of KM Gold Inc., a public Kazakh gold mining company, and a financial controller at Sequa Petroleum Kazakhstan, a subsidiary of Sequa Petroleum, an oil and gas company listed on Euronext Access.

With the launch of its new Visionary Fund, Oxus Capital is poised to leverage its experience and expertise to drive innovation and growth across the region.

"Our team's diverse background and experience allows us to understand and navigate the unique cultural and business landscapes of both the Western and Eastern worlds," Mynzhanov added.

Safe Harbor Statements:

Except for the historical information contained herein, certain of the matters discussed in this communication constitute "forward-looking statements" within the meaning of the Securities Litigation Reform Act of 1995. Words such as "may," "might," "will," "should," "could," "anticipate," "estimate," "expect," "predict," "project," "future," "potential," "intend," "seek to," "plan," "assume," "believe," "target," "forecast," "goal," "objective," "continue" or the negative of such terms or other variations thereof and words and terms of similar substance used in connection with any discussion of future plans, actions, or events identify forward-looking statements. These forward-looking statements include, but are not limited to, statements regarding benefits of the proposed license, expected synergies, anticipated future financial and operating performance and results, including estimates of growth. There are a number of risks and uncertainties that could cause actual results to differ materially from the forward-looking statements included in this communication. For example, the expected timing and likelihood of completion of the pending transaction, including the timing, receipt and terms and conditions of any required governmental and regulatory approvals of the pending transaction that could reduce anticipated benefits or cause the parties to abandon the transaction, the ability to successfully integrate the businesses, the occurrence of any event, change or other circumstance that could give rise to the termination of the negotiations, the risk that the parties may not be able to satisfy the conditions to the proposed transaction in a timely manner or at all, risks related to disruption of management time from ongoing business operations due to the proposed transaction, the risk that any announcements relating to the proposed transaction could have adverse effects on the market price of common stock of related companies. All such factors are difficult to predict and are beyond our control. We disclaim and do not undertake any obligation to update or revise any forward-looking statement in this report, except as required by applicable law or regulations.

A photo accompanying this announcement is available at

<https://www.globenewswire.com/NewsRoom/AttachmentNg/821d9046-f429-4bfe-9a6f-c532326fd11e>

Attachments:



- Oxus Capital, the pioneering investment company driving Central Asia's first SPAC, unveiled today plans to launch a new visionary fund worth \$200 million.

RESPONDENT PERSONAL EXPENSES						
DATE	DESCRIPTION	AMOUNT	GBP AMOU	CATEGORY	WHO IS SPENDING	
10/02/2021	STE DE TOURISME ET VTUNIS	-3235.47	-£ 2,630.46	KARIM N ZAHMOUL	KZ EXPENSED	RESPONDENT APPOINTED TO BOD OF OXUS SPAC ON 1 JUNE 2022.
06/04/2021	TRUPHONE LTD 20004921 FT 205.60 6APR	-205.6	-£ 205.60	Bank Giro Credit	KZ EXPENSED	
08/06/2021	TRUPHONE LTD 20004921 FT 245.00 8JUN	-245	-£ 245.00	Bank Giro Credit	KZ EXPENSED	
06/07/2021	TRUPHONE LTD 20004921 FT	-151.82	-£ 151.82	Transfer	KZ EXPENSED	
09/08/2021	TRUPHONE LTD 20004921 FT	-114.5	-£ 114.50	Transfer	KZ EXPENSED	
07/09/2021	TRUPHONE LTD 20004921 FT 117.78 7SEP	-117.78	-£ 117.78	Bank Giro Credit	KZ EXPENSED	
17/09/2021	SIXT PORTUGAL RAC_30PAREDES PR	-1539.96	-£ 1,252.00	KARIM N ZAHMOUL	KZ EXPENSED	
24/09/2021	IL GABBIANO MIAMI LMIAMI FL	-590	-£ 479.67	KARIM N ZAHMOUL	KZ EXPENSED	
06/10/2021	TRUPHONE LTD 20004921 FT 146.44 6OCT	-146.44	-£ 146.44	Bank Giro Credit	KZ EXPENSED	
23/10/2021	LE DAMANTIN HOTEL & PARIS PA	-1114.32	-£ 905.95	KARIM N ZAHMOUL	KZ EXPENSED	
04/11/2021	AIR FRANCE COMPTOIR FRANCE HT	-1241.13	-£ 1,009.05	KARIM N ZAHMOUL	KZ EXPENSED	
17/01/2022	TRUPHONE LTD 20004921 FT	-330.36	-£ 330.36	Transfer	KZ EXPENSED	
23/01/2022	MR. C MIAMI - COCONUMIAMI FL	-1629.57	-£ 1,324.85	KARIM N ZAHMOUL	KZ EXPENSED	
01/03/2022	HOTEL HERITAGE MADRID	-839.84	-£ 839.84	KARIM N ZAHMOUL	KZ EXPENSED	
07/03/2022	TRUPHONE LTD 20004921 FT 222.00 7MAR	-222	-£ 222.00	Bank Giro Credit	KZ EXPENSED	
09/03/2022	TRUPHONE LTD 20004921 FT 115.20 9MAR	-115.2	-£ 115.20	Bank Giro Credit	KZ EXPENSED	
07/04/2022	TRUPHONE LTD 20004921 FT 115.95 7APR	-115.95	-£ 115.95	Bank Giro Credit	KZ EXPENSED	
10/04/2022	HOTEL HERITAGE MADRID MA	-379.66	-£ 308.67	KARIM N ZAHMOUL	KZ EXPENSED	
13/04/2022	HOTEL HERITAGE MADRID MA	-381.15	-£ 309.88	KARIM N ZAHMOUL	KZ EXPENSED	
06/05/2022	TRUPHONE LTD 20004921 FT	-114	-£ 114.00	Transfer	KZ EXPENSED	
06/07/2022	TRUPHONE LTD 20004921 FT 119.14 6JUL	-119.14	-£ 119.14	Bank Giro Credit	KZ EXPENSED	
20/07/2022	WWW.DEUTSCHEBAHN.COMBERLIN DE	-232.12	-£ 188.72	KARIM N ZAHMOUL	KZ SPAC	
08/08/2022	TRUPHONE LTD 20004921 FT 119.39 8AUG	-119.39	-£ 119.39	Bank Giro Credit	KZ EXPENSED	
02/09/2022	HOTEL ON BOOKING.COMAMSTERDAM NL	-1581.63	-£ 1,285.88	KARIM N ZAHMOUL	KZ EXPENSED	
02/09/2022	1 HOTEL PARK NEW YORK NY	-44.75	-£ 36.38	KARIM N ZAHMOUL	KZ SPAC	
02/09/2022	1 HOTEL PARK NEW YORK NY	-38.11	-£ 30.98	KARIM N ZAHMOUL	KZ SPAC	
02/09/2022	Payment from Oxus Capital Pte. Ltd.	922.51	£ 750.01	TOPUP	OXUS	
07/09/2022	TRUPHONE LTD 20004921 FT 305.97 7SEP	-305.97	-£ 305.97	Bank Giro Credit	KZ EXPENSED	
15/09/2022	WWW.DEUTSCHEBAHN.COMBERLIN DE	-226.59	-£ 184.22	KARIM N ZAHMOUL	KZ SPAC	
18/09/2022	WWW.DEUTSCHEBAHN.COMBERLIN DE	-122.36	-£ 99.48	KARIM N ZAHMOUL	KZ SPAC	
24/09/2022	AMERICAN AIRLINES 800-433-7300 TX	-338.61	-£ 275.29	KARIM N ZAHMOUL	KZ SPAC	
02/10/2022	TST* LA GOULUE NEW YNEW YORK NY	-243.02	-£ 197.58	KARIM N ZAHMOUL	KZ SPAC	
06/10/2022	TRUPHONE LTD 20004921 FT 122.11 6OCT	-122.11	-£ 122.11	Bank Giro Credit	KZ EXPENSED	
07/10/2022	THE PARK LANE HOTEL NEW YORK NY	-196	-£ 159.35	KARIM N ZAHMOUL	KZ SPAC	
07/10/2022	THE PARK LANE HOTEL NEW YORK NY	-97	-£ 78.86	KARIM N ZAHMOUL	KZ SPAC	
10/10/2022	PARK LANE HOTEL PARKNEW YORK NY	-6014.69	-£ 4,889.99	KARIM N ZAHMOUL	KZ SPAC	
15/10/2022	PARK LANE HOTEL PARKNEW YORK NY	6014.69	£ 4,889.99	KARIM N ZAHMOUL	KZ SPAC	
09/11/2022	TRUPHONE LTD 20004921 FT 322.00 9NOV	-322	-£ 322.00	Bank Giro Credit	KZ EXPENSED	
19/12/2022	ROVE* RENTALDEPOSIT NEW YORK NY	-45337.53	-£ 36,859.78	KARIM N ZAHMOUL	KZ SPAC	
09/01/2023	TRUPHONE LTD 20004921 FT 120.18 9JAN	-120.18	-£ 120.18	Bank Giro Credit	KZ EXPENSED	
20/01/2023	DUVET VACATION RENTACHARLESTON SC	-865.52	-£ 703.67	KARIM N ZAHMOUL	KZ SPAC	
20/01/2023	HERTZ CAR RENTAL	-387.8	-£ 315.28	KARIM N ZAHMOUL	KZ SPAC	
21/01/2023	BT*ZERORESTAUARA*RESTNEW YORK NY	-300	-£ 243.90	KARIM N ZAHMOUL	KZ SPAC	
22/01/2023	AMERICAN AIRLINES 45800-433-7300 TX	-1285.81	-£ 1,045.37	KARIM N ZAHMOUL	KZ SPAC	
22/01/2023	HERTZ CAR RENTAL	-335.19	-£ 272.51	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AIRBNB * HM3N5Q9RDQ SAN FRANCISCO CA	-2745.74	-£ 2,232.31	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-499.8	-£ 406.34	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-499.8	-£ 406.34	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-69.34	-£ 56.37	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-57.8	-£ 46.99	KARIM N ZAHMOUL	KZ SPAC	
24/01/2023	HERTZ CAR RENTAL	-208.32	-£ 169.37	KARIM N ZAHMOUL	KZ SPAC	
25/01/2023	TST* HER NAME IS HANNEW YORK NY	-189.6	-£ 154.15	KARIM N ZAHMOUL	KZ SPAC	
29/01/2023	HERTZ CAR RENTAL	-156.58	-£ 127.30	KARIM N ZAHMOUL	KZ SPAC	
30/01/2023	HERTZ CAR RENTAL	-120.66	-£ 98.10	KARIM N ZAHMOUL	KZ SPAC	
31/01/2023	EATALY NY SALIDO 033NEW YORK NY	-134.04	-£ 108.98	KARIM N ZAHMOUL	KZ SPAC	
07/02/2023	RUTHS CHRIS STEAK HOCOLUMBIA SC	-330	-£ 268.29	KARIM N ZAHMOUL	KZ SPAC	
08/02/2023	TST* PRIVATE PROPERTLEXINGTON SC	-372.02	-£ 302.46	KARIM N ZAHMOUL	KZ SPAC	
08/02/2023	TRUPHONE LTD 20004921 FT	-246.28	-£ 246.28	Transfer	KZ EXPENSED	
08/02/2023	EXXONMOBIL 4219 ROCK HILL SC	-66.2	-£ 53.82	KARIM N ZAHMOUL	KZ SPAC	
08/02/2023	HERTZ CAR RENTAL	-50.24	-£ 40.85	KARIM N ZAHMOUL	KZ SPAC	
15/02/2023	TST* RUBIROSA - MULBNEW YORK NY	-159.68	-£ 129.82	KARIM N ZAHMOUL	KZ SPAC	
20/02/2023	AMERICAN AIRLINES 800-433-7300 TX	-430.79	-£ 350.24	KARIM N ZAHMOUL	KZ SPAC	
20/02/2023	AMERICAN AIRLINES 800-433-7300 TX	-430.79	-£ 350.24	KARIM N ZAHMOUL	KZ SPAC	
	TOTAL EXPENSED		-£ 58,823.31			
	PLUS SECOND RENT PAYMENT FOR NY FLAT NOT ITEMIZE		-£ 32,000.00			
	TOTAL		-£ 90,823.31			
	PLUS REIMBURSEMENTS BY OXUS		£ 76,474.36			
	DELTA (AS OF FEB. 2022)		-£ 14,348.95			

23 April 2023

Dear Karim and to whom it may concern,

As I understand, certain enquiries have been made regarding historic Oxus Capital Pte. Ltd. reimbursements to your bank account.

Please allow this letter to confirm that Mr. Karim Zahmoul serves as an independent director for Oxus Acquisition Corp, a NASDAQ-listed company (ticker symbol: OXUS). In his capacity as an independent director, Mr. Zahmoul is periodically requested to assist our management team with due diligence and other matters. In these instances, he travels with our team to provide his valuable expertise on specific subject matter. As per customary practice for independent directors, Oxus Capital Pte. Ltd., a holding company reimburses Mr. Zahmoul's travel expenses.

During the period of January 15th to March 15th, 2023, and again from April 16th to May 31st, 2023, our team was required to stay in New York for an extended duration. We requested Mr. Zahmoul to utilize his U.S. credit card for the purpose of facilitating the rental of an apartment for the team's accommodation. I can confirm that Oxus Capital Pte. Ltd. has fully reimbursed Mr. Zahmoul for these expenses.

Please do not hesitate to contact me should you require any further information or clarification.

Yours faithfully,



Kanat Mynzhanov
Chief Executive Officer

Tel +44(0)7767171717
kanat@oxusacquisition.com



Source: Oxus Acquisition Corp.

May 31, 2023 20:56 ET

Oxus Acquisition Corp. Nears Nasdaq Listing of Borealis Foods Inc., Led by Non-Executive Chairman Kenges Rakishev, Following Groundbreaking Central Asian SPAC Success

NEW YORK, June 01, 2023 (GLOBE NEWSWIRE) -- Following the successful completion of Central Asia's first Special Purpose Acquisition Company (SPAC), [Oxus Acquisition Corp.'s](#) (NASDAQ:OXUS) IPO, Non-Executive Chairman Kenges Rakishev is leading the charge for the upcoming Nasdaq listing of [Borealis Foods Inc.](#)

Founded by its CEO Reza Soltanzadeh, Borealis Foods, a pioneering entity in the food technology industry, has successfully engineered a nutritious, affordable, and environmentally friendly array of ready-to-consume plant-based meals.

These meals are currently available in the US and Canada, with plans for expansion into the European market imminent. The company stands at the forefront of innovation, having introduced the world's first plant-based ramen meal on a mass scale, boasting 20 grams of comprehensive protein per serving.

This listing marks a significant milestone for the Central Asian investment landscape and a landmark achievement in Rakishev's investment career.

With a significant trajectory of acquiring and investing in over 50 businesses in various industries such as metals & mining, oil, petrochemicals, banking, fintech, information technology, ecommerce, logistics, and insurance, Rakishev's diverse investment portfolio includes about ten active companies worldwide, demonstrating his knack for identifying and driving growth in businesses across the global stage.

Rakishev's leadership roles have not been confined to Oxus Acquisition alone. Since March 2021, he has served as the President of [Fincraft Group LLP](#), a diversified holding company listed on the Kazakhstan Stock Exchange. Rakishev has also been the Chairman of the Board of Fincraft Resources JSC since September 2008, a diversified holding company focused on the natural resources and disruptive technology industries. Furthermore, up until December 31, 2021 he held leadership positions at Battery Metals Technologies Ltd., an electric vehicle battery metals company.

From 2013 to May 2018, he served as a non-executive ⁰³⁵director of Central Asia Metals Plc and was the controlling shareholder and chairman of Kazkommertsbank JSC, the largest Kazakh commercial

bank, from March 2015 to June 2017.

Rakishev's leadership, together with the acumen and dedication of CEO [Kanat Mynzhanov](#), has successfully navigated Oxus Acquisition through the complexities of the SPAC formation and listing, setting the stage for its upcoming partnership with Borealis Foods, to go public before 4Q 2023.

Safe Harbor Statements:

Except for the historical information contained herein, certain of the matters discussed in this communication constitute "forward-looking statements" within the meaning of the Securities Litigation Reform Act of 1995. Words such as "may," "might," "will," "should," "could," "anticipate," "estimate," "expect," "predict," "project," "future," "potential," "intend," "seek to," "plan," "assume," "believe," "target," "forecast," "goal," "objective," "continue" or the negative of such terms or other variations thereof and words and terms of similar substance used in connection with any discussion of future plans, actions, or events identify forward-looking statements. These forward-looking statements include, but are not limited to, statements regarding benefits of the proposed license, expected synergies, anticipated future financial and operating performance and results, including estimates of growth. There are a number of risks and uncertainties that could cause actual results to differ materially from the forward-looking statements included in this communication. For example, the expected timing and likelihood of completion of the pending transaction, including the timing, receipt and terms and conditions of any required governmental and regulatory approvals of the pending transaction that could reduce anticipated benefits or cause the parties to abandon the transaction, the ability to successfully integrate the businesses, the occurrence of any event, change or other circumstance that could give rise to the termination of the negotiations, the risk that the parties may not be able to satisfy the conditions to the proposed transaction in a timely manner or at all, risks related to disruption of management time from ongoing business operations due to the proposed transaction, the risk that any announcements relating to the proposed transaction could have adverse effects on the market price of common stock of related companies. All such factors are difficult to predict and are beyond our control. We disclaim and do not undertake any obligation to update or revise any forward-looking statement in this report, except as required by applicable law or regulations.

A photo accompanying this announcement is available at <https://www.globenewswire.com/NewsRoom/AttachmentNg/7bd5ce93-d860-4d1d-bc57-380a2f7cf7ff>

Attachments:



Following the successful completion of Central Asia's first Special Purpose Acquisition Company (SPAC), Oxus Acquisition Corp.'s (NASDAQ:OXUS) IPO, Non-Executive Chairman Kenges Rakishev is leading the charge for the upcoming Nasdaq listing of Borealis Foods Inc.

Form S-4

14th August 2023

As filed with the Securities and Exchange Commission on **August 14, 2023.**

Registration No. 333-

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands	6770	N/A
(State or other jurisdiction of incorporation or organization)	(Primary Standard Industrial Classification Code Number)	(IRS Employer Identification Number)

300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

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Tel: (212) 801-6928

Stephanie Stimpson
Adrienne DiPaolo
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South Tower
Toronto, Ontario
M5K 1N2 Canada
Tel: (416) 865-0040

Richard Langan
Christopher Keefe
Nixon Peabody LLP
55 West 46th Street
New York, NY 10036
Tel: (212) 940-3000

John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐

Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on August 14, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

POWER OF ATTORNEY

KNOW ALL MEN BY THESE PRESENTS, that each of the undersigned constitutes and appoints each of Kanat Mynzhanov and Askar Mametov as their true and lawful attorney-in-fact and agent, with full power of substitution and resubstitution, for such person and in his or her name, place and stead, in any and all capacities, to sign this Registration Statement on Form S-4 (including all pre-effective and post-effective amendments and registration statements filed pursuant to Rule 462 under the Securities Act of 1933), and to file the same, with all exhibits thereto, and other documents in connection therewith, with the U.S. Securities and Exchange Commission, granting unto said attorney-in-fact and agent full power and authority to do and perform each and every act and thing requisite and necessary to be done in and about the premises, as fully to all intents and purposes as he or she might or could do in person, hereby ratifying and confirming that any such attorney-in-fact and agent, or his substitute or substitutes, may lawfully do or cause to be done by virtue hereof.

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	August 14, 2023
<u>/s/ Askar Mametov</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	August 14, 2023
<u>/s/ Kenges Rakishev</u> Kenges Rakishev	Non-executive Chairman and Director	August 14, 2023
<u>/s/ Christophe Charlier</u> Christophe Charlier	Director	August 14, 2023
<u>/s/ Karim Zahmoul</u> Karim Zahmoul	Director	August 14, 2023
<u>/s/ Shiv Vikram Khemka</u> Shiv Vikram Khemka	Director	August 14, 2023

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on August 14, 2023.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-6

Form S-4
23rd October 2023

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

Amendment No. 1

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands	6770	N/A
(State or other jurisdiction of incorporation or organization)	(Primary Standard Industrial Classification Code Number)	(IRS Employer Identification Number)

300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680

Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
Wilmington, Delaware 19801
(302) 421-5750

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

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Tel: (212) 801-6928

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Tel: (212) 940-3000

John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

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If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐

Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on October 23, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u>	Chief Executive Officer and Director	October 23, 2023
<u>Kanat Mynzhanov</u>	(Principal Executive Officer)	
<u>*</u>	Chief Financial Officer	October 23, 2023
<u>Askar Mametov</u>	(Principal Financial and Accounting Officer)	
<u>*</u>	Non-executive Chairman and Director	October 23, 2023
<u>Kenges Rakishev</u>		
<u>*</u>	Director	October 23, 2023
<u>Christophe Charlier</u>		
<u>*</u>	Director	October 23, 2023
<u>Karim Zahmoul</u>		
<u>*</u>	Director	October 23, 2023
<u>Shiv Vikram Khemka</u>		

*By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

Form S-4

13th November 2023

As filed with the Securities and Exchange Commission on **November 13, 2023.**

Registration No. 333-273967

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 2

to

Form S-4**Registration Statement Under the Securities Act of 1933****OXUS ACQUISITION CORP.**

(Exact name of registrant as specified in its charter)

Cayman Islands**6770****N/A**(State or other jurisdiction of
incorporation or organization)(Primary Standard Industrial
Classification Code Number)(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

**Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
Wilmington, Delaware 19801
(302) 421-5750**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

**Alan I. Annex
Yuta N. Delarck
Greenberg Traurig, LLP
One Vanderbilt Avenue
New York, NY 10017
Tel: (212) 801-6928**

**Stephanie Stimpson
Adrienne DiPaolo
Torys LLP
79 Wellington St. W.,
30th Floor, Box 270, TD
South Tower
Toronto, Ontario
M5K 1N2 Canada
Tel: (416) 865-0040**

**Richard Langan
Christopher Keefe
Nixon Peabody LLP
55 West 46th Street
New York, NY 10036
Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on November 13, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	November 13, 2023
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	November 13, 2023
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	November 13, 2023
<u>*</u> Christophe Charlier	Director	November 13, 2023
<u>*</u> Karim Zahmoul	Director	November 13, 2023
<u>*</u> Shiv Vikram Khemka	Director	November 13, 2023

*By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on November 13, 2023.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

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Form S-4
22nd December 2023

As filed with the Securities and Exchange Commission on **December 22, 2023,**

Registration No. 333-273967

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 3

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands**6770****N/A**(State or other jurisdiction of
incorporation or organization)(Primary Standard Industrial
Classification Code Number)(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

**Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
Wilmington, Delaware 19801
(302) 421-5750**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

**Alan I. Annex
Yuta N. Delarck
Greenberg Traurig, LLP
One Vanderbilt Avenue
New York, NY 10017
Tel: (212) 801-6928**

**Stephanie Stimpson
Adrienne DiPaolo
Torys LLP
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South Tower
Toronto, Ontario
M5K 1N2 Canada
Tel: (416) 865-0040**

**Richard Langan
Christopher Keefe
Nixon Peabody LLP
55 West 46th Street
New York, NY 10036
Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on December 22, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	December 22, 2023
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	December 22, 2023
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	December 22, 2023
<u>*</u> Christophe Charlier	Director	December 22, 2023
<u>*</u> Karim Zahmoul	Director	December 22, 2023
<u>*</u> Shiv Vikram Khemka	Director	December 22, 2023

*By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on December 22, 2023.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-7

Oxus Acquisition Corp.
2024

Form S-4
5th January 2024

As filed with the Securities and Exchange Commission on **January 5, 2024.****Registration No. 333-273967**

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

**Amendment No. 4
to
Form S-4
Registration Statement Under the Securities Act of 1933**

OXUS ACQUISITION CORP.
(Exact name of registrant as specified in its charter)

Cayman Islands

(State or other jurisdiction of
incorporation or organization)

6770

(Primary Standard Industrial
Classification Code Number)

N/A

(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

**Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
Wilmington, Delaware 19801
(302) 421-5750**

Copies to:

**Alan I. Annex
Yuta N. Delarck
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Tel: (212) 801-6928**

**Stephanie Stimpson
Adrienne DiPaolo
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**Richard Langan
Christopher Keefe
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Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
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855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

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Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐

Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on January 5, 2024.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov
Kanat Mynzhanov
Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	January 5, 2024
* <u>Askar Mametov</u>	Chief Financial Officer (Principal Financial and Accounting Officer)	January 5, 2024
* <u>Kenges Rakishev</u>	Non-executive Chairman and Director	January 5, 2024
* <u>Christophe Charlier</u>	Director	January 5, 2024
* <u>Karim Zahmoul</u>	Director	January 5, 2024
* <u>Shiv Vikram Khemka</u>	Director	January 5, 2024
* By: <u>/s/ Kanat Mynzhanov</u> Name: Kanat Mynzhanov Title: Attorney-in-Fact		

AUTHORIZED REPRESENTATIVE IN THE UNITED STATES

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on January 5, 2024.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-4

Form S-4
11th January 2024

As filed with the Securities and Exchange Commission on **January 11, 2024.****Registration No. 333-273967**

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 5

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands**6770****N/A**(State or other jurisdiction of
incorporation or organization)(Primary Standard Industrial
Classification Code Number)(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
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(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

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Emerging growth company ☒

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[Table of Contents](#)

The information in this preliminary proxy statement/prospectus is not complete and may be changed. We may not issue these securities until the registration statement filed with the Securities and Exchange Commission is effective. This preliminary proxy statement/prospectus is not an offer to sell these securities and it is not soliciting an offer to buy these securities in any jurisdiction where the offer or sale is not permitted.

Preliminary — Subject to Completion, Dated January 11, 2024

**PROXY STATEMENT AND PROSPECTUS
DATED [•], 2024**

OXUS ACQUISITION CORP.

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020**

Dear Shareholder of Oxus Acquisition Corp.:

You are cordially invited to attend the extraordinary general meeting of shareholders of Oxus Acquisition Corp., which we refer to as “we,” “us,” “our,” or “Oxus,” at [•], Eastern time, on [•], 2024 (the “Meeting”). Oxus will hold the Meeting in both virtual and physical format and we strongly recommend that you attend the Meeting virtually. For the purposes of the Articles (as defined below), the physical place of the meeting will be at the offices of Greenberg Traurig, LLP, located at One Vanderbilt Avenue, New York, NY 10017, United States of America. You will be able to attend, vote your shares, and submit questions during the Meeting either in person or virtually via a live audio webcast. In order to attend the Meeting virtually, you must pre-register at the following website: <https://www.cstproxy.com/oxusacquisition/2024>.

At the Meeting, our shareholders will be asked to consider and vote upon, among other proposals, a proposal, which we refer to as the “Business Combination Proposal,” to approve the Business Combination (as defined below) by the approval and adoption of the transactions contemplated by the business combination agreement (as may be amended, the “Business Combination Agreement”) that Oxus has entered into with Borealis Foods Inc., a corporation incorporated under the Laws of Canada (“Borealis”), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus (“Newco”). The Business Combination will be effected principally by a statutory arrangement (the “Arrangement”) under the *Canada Business Corporations Act* and the *Business Corporations Act* (Ontario) (the “OBCA”) pursuant to the terms of the plan of arrangement (as may be amended, the “Plan of Arrangement”) attached to and forming part of the Business Combination Agreement.

Pursuant to and in accordance with the terms of the Business Combination and the Plan of Arrangement, among other things: (a) Oxus will domesticate and continue as a corporation under the laws of the Province of Ontario, Canada (the “Continuance” and, Oxus as the continuing entity, “New Oxus”); (b) on the date of closing (the “Closing Date”), Newco and Borealis will amalgamate (the “Borealis Amalgamation”, and the amalgamated corporation resulting therefrom, “Amalco”), with Amalco surviving the Borealis Amalgamation as a wholly-owned subsidiary of New Oxus; and (c) on the Closing Date, immediately following the Borealis Amalgamation, New Oxus and Amalco will amalgamate (the “New Oxus Amalgamation,” and together with the Borealis Amalgamation, the “Amalgamations,” and the corporation resulting therefrom, “New Borealis,” as a corporation under the laws of the Province of Ontario, Canada), with New Borealis surviving the New Oxus Amalgamation (the Amalgamations, together with the Continuance and other transactions contemplated by the Business Combination Agreement, the Plan of Arrangement and the ancillary agreements, the “Transactions” or the “Business Combination”). New Borealis, as the surviving entity of the New Oxus Amalgamation, will continue under the name “Borealis Foods Inc.” Capitalized terms used in this cover letter but not otherwise defined herein have the meanings given to them in the proxy statement/prospectus of Oxus on Form S-4 to which this letter is attached.

Pursuant to the Business Combination Agreement, on the day prior to the Closing Date, Oxus intends to de-register as an exempted company in the Cayman Islands and domesticate and continue as New Oxus, a corporation continued under the OBCA. On the Closing Date, as part of the Arrangement and in accordance with the terms of the Plan of Arrangement, each of the following transactions will occur and be deemed to occur sequentially in the following order (effective as at five-minute intervals starting at the Arrangement Effective Time):

- all outstanding convertible financing instruments of Borealis, including the Sponsor Convertible Notes, that are being converted into Borealis Shares (as defined below) immediately prior to the Amalgamations (collectively, the “Borealis Convertible Instruments”) (which exclude (A) any convertible financing instrument of Borealis that will be repaid prior to the Closing in accordance with its terms, (B) the Remaining Borealis Convertible Instruments, and (C) the New Investor Convertible Notes, which will subsequently convert into New Borealis Common Shares pursuant to the terms of the Plan of Arrangement as discussed below) will, without further action by or on behalf of a holder of Borealis Convertible Instruments, be converted into Borealis Shares pursuant to their terms and the terms of any applicable conversion agreements;

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on January 11, 2024.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u>	Chief Executive Officer and Director	January 11, 2024
Kanat Mynzhanov	(Principal Executive Officer)	
<u>*</u>	Chief Financial Officer	January 11, 2024
Askar Mametov	(Principal Financial and Accounting Officer)	
<u>*</u>	Non-executive Chairman and Director	January 11, 2024
Kenges Rakishev		
<u>*</u>	Director	January 11, 2024
Christophe Charlier		
<u>*</u>	Director	January 11, 2024
Karim Zahmoul		
<u>*</u>	Director	January 11, 2024
Shiv Vikram Khemka		
*By: <u>/s/ Kanat Mynzhanov</u>		
Name: Kanat Mynzhanov		
Title: Attorney-in-Fact		

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on January 11, 2024.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-7

16th January 2024

OXUS ACQUISITION CORP. (excerpts)

300/26 Dostyk Avenue

Almaty, Kazakhstan 050020

PAGE 30:

The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;

- the fact that given the differential in the purchase price that the Sponsor paid for the Founder Shares as compared to the price of the Public Units sold in the IPO and the substantial number of Class A Shares that the Sponsor will receive upon conversion of the Founder Shares in connection with the Business Combination, **the Sponsor may earn a positive rate of return on their investment even if the Class A Shares trade below the price initially paid for the Public Units in the IPO** and the public shareholders experience a negative rate of return following the completion of the Business Combination;

PAGE 43: Lock-Up Agreements

In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.

PAGE 245-246:

Directors and Officers

The below lists Oxus' current officers and directors.

Name	Age	Title
Kenges Rakishev	44	Non-executive Chairman and Director
Kanat Mynzhanov	40	Chief Executive Officer and Director
Askar Mametov	40	Chief Financial Officer
Christophe Charlier	51	Director
Karim Zahmoul	58	Director
Shiv Vikram Khemka	61	Director

Karim Zahmoul has served as one of Oxus' independent directors since June 2022. Mr. Zahmoul has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm's international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College.

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Number and Terms of Office of Officers and Directors

The Oxus Board consists of five members. The Oxus Board is divided into three classes, with only one class of directors being elected in each year, and with each class (except for those directors appointed prior to Oxus' first annual meeting of stockholders) serving a three-year term. The term of office of the first class of directors, consisting of **Karim Zahmoul**, will expire at Oxus' first annual meeting of shareholders. The term of office of the second class of directors, consisting of Christophe Charlier and Shiv Vikram Khemka, will expire at Oxus' second annual meeting of

shareholders. The term of office of the third class of directors, consisting of Kenges Rakishev and Kanat Mynzhanov, will expire at Oxus' third annual meeting of shareholders.

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Audit Committee

Oxus gas established an audit committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The audit committee's duties, which are specified in Oxus' Audit Committee Charter, include, but are not limited to:

- reviewing and discussing with management and the independent auditor the annual audited financial statements, and recommending to the board whether the audited financial statements should be included in Oxus' Form 10-K;
- discussing with management and the independent auditor significant financial reporting issues and judgments made in connection with the preparation of Oxus' financial statements;
- discussing with management major risk assessment and risk management policies;
- discussing with management major risk assessment and risk management policies;
- monitoring the independence of the independent auditor;
- verifying the rotation of the lead (or coordinating) audit partner having primary responsibility for the audit and the audit partner responsible for reviewing the audit as required by law;
- reviewing and approving all related party transactions;
- inquiring and discussing with management Oxus' compliance with applicable laws and regulations;
- pre-approving all audit services and permitted non-audit services to be performed by Oxus' independent auditor, including the fees and terms of the services to be performed;
- appointing or replacing the independent auditor;
- determining the compensation and oversight of the work of the independent auditor (including resolution of disagreements between management and the independent auditor regarding financial reporting) for the purpose of preparing or issuing an audit report or related work;
- establishing procedures for the receipt, retention and treatment of complaints received by Oxus regarding accounting, internal accounting controls or reports which raise material issues regarding Oxus' financial statements or accounting policies; and

- approving reimbursement of expenses incurred by Oxus' management team in identifying potential target businesses.

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Financial Experts on Audit Committee

The audit committee will at all times be composed exclusively of "independent directors" who are "financially literate" as defined under the Nasdaq's listing standards. The Nasdaq's standards define "financially literate" as being able to read and understand fundamental financial statements, including a company's balance sheet, income statement and cash flow statement.

In addition, Oxus must certify to the Nasdaq that the committee has, and will continue to have, at least one member who has past employment experience in finance or accounting, requisite professional certification in accounting, or other comparable experience or background that results in the individual's financial sophistication. The board of directors has determined that Christophe Charlier qualifies as an "audit committee financial expert," as defined under rules and regulations of the SEC.

Nominating Committee

Oxus has established a nominating committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The nominating committee is responsible for overseeing the selection of persons to be nominated to serve on the Oxus Board. The nominating committee considers persons identified by its members, management, shareholders, investment bankers and others.

Guidelines for Selecting Director Nominees

The guidelines for selecting nominees, which are specified in the Nominating Committee Charter, generally provide those persons to be nominated:

- **should have demonstrated notable or significant achievements in business, education or public service;**
- should possess the requisite intelligence, education and experience to make a significant contribution to the board of directors and bring a range of skills, diverse perspectives and backgrounds to its deliberations; and
- **should have the highest ethical standards, a strong sense of professionalism and intense dedication to serving the interests of the shareholders.**

The Nominating Committee will consider a number of qualifications relating to management and leadership experience, background and integrity and professionalism in evaluating a person's candidacy for membership on the board of directors. The nominating committee may require certain skills or attributes, such as financial or accounting experience, to meet specific board needs that arise from time to time and will also consider the overall experience and makeup of its

members to obtain a broad and diverse mix of board members. The nominating committee does not distinguish among nominees recommended by shareholders and other persons.

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Compensation Committee

Oxus has established a compensation committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The compensation committee's duties, which are specified in Oxus' Compensation Committee Charter, include, but are not limited to:

- reviewing and approving on an annual basis the corporate goals and objectives relevant to Oxus' Chief Executive Officer's compensation, evaluating Oxus' Chief Executive Officer's performance in light of such goals and objectives and determining and approving the remuneration (if any) of Oxus' Chief Executive Officer based on such evaluation;
- reviewing and approving the compensation of all of Oxus' other executive officers;
- reviewing Oxus' executive compensation policies and plans;
- implementing and administering Oxus' incentive compensation equity-based remuneration plans;
- assisting management in complying with Oxus' proxy statement and annual report disclosure requirements;

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- approving all special perquisites, special cash payments and other special compensation and benefit arrangements for Oxus' executive officers and employees;
- if required, producing a report on executive compensation to be included in Oxus' annual proxy statement; and
- reviewing, evaluating and recommending changes, if appropriate, to the remuneration for directors.

Code of Ethics

Oxus has adopted a code of ethics that applies to all of Oxus' executive officers, directors and employees. The code of ethics codifies the business and ethical principles that govern all aspects of Oxus' business.

Legal Proceedings

As of the date of this proxy statement/prospectus, to the knowledge of Oxus' management, there was no material litigation, arbitration or governmental proceeding pending against Oxus or any

members of Oxus' management team in their capacity as such, and Oxus and the members of Oxus' management team have not been subject to any such proceeding.

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Unless otherwise indicated, Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. **The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus.** The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd. ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
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Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*

Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)						
	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.
- (2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company (“Meteora Capital”) with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the “Meteora Funds”); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the “Funds”), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the “Adviser”). Ari Glass is the Managing Member of the Adviser. Certain subadvisors (“Subadvisors”) have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.
- (11) Does not include shares to be transferred by the Sponsor pursuant to the incentive agreements upon successful completion of the Business Combination.
- (12) Represents securities held by Belphar. Ltd., of which Shukhrat Ibragimov is the controlling shareholder.

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On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or**

\$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.

6th February 2024

Form 8-K

Exhibit 3.1

Certificate of Continuance

6th February 2024

EX-3.1 2 ea020644101ex3-1_borealis.htm ARTICLES OF CONTINUANCE, DATED FEBRUARY 6, 2024

Exhibit 3.1

**Ministry of Public and
Business Service Delivery
Ministère des Services au public et
aux entreprises**

Certificate of Continuance

Business Corporations Act

Certificat de maintien

Loi sur les sociétés par actions

OXUS ACQUISITION CORP.

Corporation Name / Dénomination sociale

1000789352

Ontario Corporation Number / Numéro de société de l'Ontario

This is to certify that these articles are effective on

La présente vise à attester que ces statuts entreront en vigueur le

February 06, 2024 / 06 février 2024

A handwritten signature in dark ink, appearing to read "V. Quintanilla W.".

Director / Directeur

Business Corporations Act / Loi sur les sociétés par actions

The Certificate of Continuance is not complete
without the Articles of Continuance

Certified a true copy of the record of the Ministry of
Public and Business Service Delivery.



Le certificat de maintien n'est pas complet s'il ne
contient pas les statuts de maintien

Copie certifiée conforme du dossier du ministère des
Services au public et aux entreprises.

A handwritten signature in dark ink, appearing to read "V. Quintanilla W.".

Director/Registrar

A handwritten signature in dark ink, appearing to read "V. Quintanilla W.".

Directeur ou registrateur

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024



Ministry of Public and
Business Service Delivery

Articles of Continuance

Business Corporations Act

1. Corporation Name

OXUS ACQUISITION CORP.

2. Date of Incorporation/Amalgamation

February 03, 2021

3. Name of jurisdiction the corporation is leaving

Cayman Islands

4. The continuance was authorized by home jurisdiction on

January 31, 2024

5. The corporation is continued in Ontario under the name

OXUS ACQUISITION CORP.

6. Registered Office Address

79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2

7. Number of Directors

Minimum/Maximum Min 3 / Max 10

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

Certified a true copy of the record of the Ministry of Public and Business Service Delivery.

V. Quintanilla W.

Director/Registrar, Ministry of Public and Business Service Delivery

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024

8. The director(s) is/are:

Full Name	CHRISTOPHE CHARLIER
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	SHIV VIKRAM KHEMKA
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	KANAT MYNZHANOV
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	KENGES RAKISHEV
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	KARIM ZAHMOUL
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2

9. Restrictions, if any, on business the corporation may carry on or on powers the corporation may exercise. If none, enter "None":

None

10. The classes and any maximum number of shares that the corporation is authorized to issue:

The Corporation is authorized to issue First Preferred Shares, issuable in series, to be limited in number to an amount equal to not more than 20% of the number of issued and outstanding Common Shares at the time of issuance of any First Preferred Shares, and an unlimited number of Common Shares.

11. Rights, privileges, restrictions and conditions (if any) attaching to each class of shares and directors' authority with respect to any class of shares which may be issued in series. If there is only one class of shares, enter "Not Applicable":

COMMON SHARES

The rights, privileges, restrictions and conditions attaching to the Common Shares shall be as follows:

1. Voting

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V. Quintanilla W.

Director/Registrar, Ministry of Public and Business Service Delivery

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024

The holders of the Common Shares shall be entitled to receive notice of and to attend any meeting of the shareholders of the Corporation, except meetings at which only holders of a different class or series of shares of the Corporation are entitled to vote, and shall be entitled to one vote for each Common Share.

2. Dividends

Subject to the prior rights and privileges attached to any other class or series of shares of the Corporation, the holders of the Common Shares shall be entitled to receive dividends at such times and in such amounts as the directors of the Corporation may in their discretion from time to time declare.

3. Liquidation

Subject to the prior rights and privileges attached to any other class or series of shares of the Corporation, upon the voluntary or involuntary liquidation, dissolution or winding-up of the Corporation or any other distribution of its assets among its share-holders for the purpose of winding up its affairs (such event referred to herein as a "Distribution"), each holder of Common Shares shall have the right to receive, in cash or other assets, for each Common Share held, from out of (but only to the extent of) the remaining property of the Corporation legally available for distribution to shareholders, its pro rata share of such remain-ing property based on the number of Common Shares held thereby, and shall rank equally with all holders of Common Shares with respect to such Distribution.

FIRST PREFERRED SHARES

The rights, privileges, restrictions and conditions attaching to the First Preferred Shares, as a class, shall be as follows:

1. Issuance in Series

(a) Subject to the filing of Articles of Amendment in accordance with the Business Corporations Act (Ontario) (the "Act"), the Board of Directors may at any time and from time to time issue the First Preferred Shares in one or more series, each series to consist of such number of shares as may, before the issuance thereof, be determined by the Board of Directors.

(b) Subject to the filing of Articles of Amendment in accordance with the Act and the provisions, the Board of Directors may from time to time fix, before issuance, the designation, rights, privileges, restrictions and conditions attaching to each series of First Preferred Shares including, without limiting the generality of the foregoing, the amount, if any, specified as being payable prefer-entially to such series on a Distribution; the extent, if any, of further participation on a Distribution; voting rights, if any; and di-vidend rights (including whether such dividends be preferential, or cumulative or non_cumulative), if any.

2. Dividends

The holders of each series of First Preferred Shares shall be entitled, in priority to holders of Common Shares and any other shares of the Corporation ranking junior to the First Preferred Shares from time to time with respect to the payment of di-vidends, to be paid rateably with holders of each other series of First Preferred Shares, the amount of accumulated dividends, if any, specified as being payable preferentially to the holders of such series.

3. Liquidation

In the event of a Distribution, holders of each series of First Preferred Shares shall be entitled, in priority to holders of Common Shares and any other shares of the Corporation ranking junior to the First Preferred Shares from time to time with respect to payment on a Distribution, to be paid rateably with holders of each other series of First Preferred Shares the amount, if any, spe-cified as being payable preferentially to the holders of such series on a Distribution.

12. The issue, transfer or ownership of shares is/is not restricted and the restrictions (if any) are as follows. If none, enter "None":

None

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

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Director/Registrar, Ministry of Public and Business Service Delivery

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BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024

13. Other provisions

None

14. The corporation is to be continued under the Business Corporations Act to the same extent as if it had been incorporated under this Act.

15. The corporation has complied with subsection 180(3) of the Business Corporations Act.

The articles have been properly executed by the required person(s).

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

Certified a true copy of the record of the Ministry of Public and Business Service Delivery.



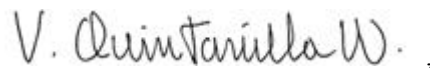
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Supporting Document -Constating Document from Governing Jurisdiction

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Director/Registrar, Ministry of Public and Business Service Delivery

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024

Supporting Information - Nuans Report Information

Nuans Report Reference #	122060772
Nuans Report Date	November 13, 2023

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

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Director/Registrar, Ministry of Public and Business Service Delivery

Form 8-K
7th February 2024

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

FORM 8-K

CURRENT REPORT

**Pursuant to Section 13 or 15(d)
of the Securities Exchange Act of 1934**

Date of Report (Date of earliest event reported): February 7, 2024

BOREALIS FOODS INC.
(Exact name of Registrant as Specified in its Charter)

Ontario
(State or other jurisdiction of
incorporation or organization)

001-40778
(Commission File Number)

98-1638988
(I.R.S. Employer
Identification No.)

**1540 Cornwall Rd. #104
Oakville, Ontario**
(Address of Principal Executive Offices)

L6J 7W5
(Zip Code)

(905) 278-2200
Registrant's telephone number, including area code

Oxus Acquisition Corp.
(Former name or former address, if changed since last report)

Check the appropriate box below if the Form 8-K filing is intended to simultaneously satisfy the filing obligations of the registrant under any of the following provisions:

- ☐ Written communications pursuant to Rule 425 under the Securities Act (17 CFR 230.425)
- ☐ Soliciting material pursuant to Rule 14a-12 under the Exchange Act (17 CFR 240.14a.12)
- ☐ Pre-commencement communications pursuant to Rule 14d-2(b) under the Exchange Act (17 CFR 240.14d-2(b))
- ☐ Pre-commencement communications pursuant to Rule 13e-4(c) under the Exchange Act (17 CFR 240.13e-4(c))

Securities registered pursuant to Section 12(b) of the Act:

Title of each class	Trading Symbol(s)	Name of each exchange on which registered
Common Shares	BRLS	Nasdaq Capital Market
Warrants	BRLSW	Nasdaq Capital Market

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933 (§230.405 of this chapter) or Rule 12b-2 of the Securities Exchange Act of 1934 (§240.12b-2 of this chapter).

Emerging growth company ☒

Introductory Note

Overview

This Current Report on Form 8-K is being filed to report matters under items 1.01, 2.01, 2.02, 3.03, 4.01, 5.01, 5.02, 5.03, 5.05, 5.06, 7.01, 8.01, and 9.01 of Form 8-K.

On February 7, 2024 (the “**Closing Date**”), Borealis Foods Inc., a corporation incorporated under the laws of Canada (“**Borealis**”), Oxus Acquisition Corp., a Cayman Islands exempted company (“**Oxus**”), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus (“**Newco**”), consummated the transactions (collectively, the “**Transaction**”) contemplated by the Business Combination Agreement, dated as of February 23, 2023, by and among Borealis, Oxus, and Newco (as amended, amended and restated, supplemented, or otherwise modified from time to time, the “**Business Combination Agreement**”) by means of a statutory arrangement (the “**Arrangement**”) under the *Canada Business Corporations Act* and the *Business Corporations Act* (Ontario), implemented in accordance with the terms and conditions set forth in the Business Combination Agreement and the plan of arrangement attached as Exhibit B thereto (as amended, amended and restated, supplemented, or otherwise modified from time to time, the “**Plan of Arrangement**”) and which is incorporated herein by reference, following the approval at an extraordinary general meeting of the shareholders of Oxus held on February 2, 2024 (the “**Special Meeting**”).

Pursuant to the terms of the Business Combination Agreement, among other things: (i) Oxus domesticated and continued as a corporation under the laws of Ontario, Canada (“**New Oxus**”); and (ii) pursuant to the Plan of Arrangement, (a) Newco and Borealis amalgamated (the “**Borealis Amalgamation**”, and the amalgamated corporation resulting therefrom, “**Amalco**”), with Amalco surviving the Borealis Amalgamation as a wholly-owned subsidiary of New Oxus; and (b) following the Borealis Amalgamation, New Oxus and Amalco amalgamated (the “**New Borealis Amalgamation**,” and together with the Borealis Amalgamation, the “**Amalgamations**,” and the corporation resulting therefrom, “**New Borealis**,” as a corporation amalgamated under the *Business Corporations Act* (Ontario)), with New Borealis surviving the New Borealis Amalgamation. New Borealis will continue under the name “Borealis Foods Inc.”

In connection with the Transaction, New Oxus issued an aggregate of 21,378,890 common shares of New Oxus (“**New Oxus Common Shares**”), which, upon completion of the New Borealis Amalgamation, survived and continued as common shares of New Borealis (the “**New Borealis Common Shares**,” and the holders thereof upon completion of the Transaction, the “**New Borealis Shareholders**”).

Conversion and Exchange of Equity in the Transaction.

Upon the closing of the Transaction (the “**Closing**”), the following occurred:

- The common shares of Borealis (“**Borealis Common Shares**”) were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) \$150,000,000 *minus* Borealis’ Closing Net Indebtedness, as agreed to by the parties, of \$17,000,000, which equals \$133,000,000, divided by (b) \$10.00 (the “**Aggregate Transaction Consideration**”).
- Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation.
- As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the “**Proxy Statement/Prospectus**”) filed by Oxus with the Securities and Exchange Commission (the “**SEC**”), which is incorporated herein by reference.

EX-99.1 26 ea193378ex99-1_borealis.htm PRESS RELEASE DATED FEBRUARY 7, 2024 ANNOUNCING THE CLOSING OF THE BUSINESS COMBINATION

Exhibit 99.1

Borealis Foods Inc., a Rapidly Growing, Mission-Driven Food Tech Company, Completes Business Combination and Will Commence Trading on Nasdaq Under the Symbol “BRLS”

Borealis has developed breakthrough nutritious food that integrates complete protein with all essential amino acids and other key ingredients.

TORONTO, Feb. 7, 2024 /CNW/ - Borealis Foods, Inc. (Nasdaq: BRLS) (Nasdaq: BRLSW)

Borealis Foods Inc. (“Borealis” or the “Company”), a food tech company focused on developing high-quality, nutritious food solutions at affordable prices, announced today that it will commence trading on the Nasdaq under the ticker “BRLS” on February 8, 2024, following the closing of its previously announced business combination (“the Business Combination”) with Oxus Acquisition Corp. (“Oxus”).

Upon closing of the Business Combination, the Company continues to be led by Borealis’ CEO and Co-Founder Reza Soltanzadeh, and Chairman and Co-Founder Barthélemy Helg.

Borealis is an innovative food technology company with a mission to address global food nutritional challenges through its research and development of highly nutritious and functional food products. The company’s focus on affordability and sustainability reflects its commitment to making a positive impact on both human life and the planet. Borealis has created ramen meals that are organic, vegan, vegetarian, Halal, Kosher, plant-based, egg and dairy free, non-GMO, MSG free, and TBHQ free, and are manufactured with recyclable packaging. Made by Borealis-owned Palmetto Gourmet Foods, the Chef Woo Ramen brand and the popular Ramen Express Ramen brand are available in the United States, Canada, Mexico and Europe.

Borealis’ mission is to address growing consumer needs and global food security challenges by developing highly nutritious and functional food products that are uniquely delicious, affordable and sustainable. The Company has rapidly expanded its retail distribution footprint over 21,000 retail locations, beyond the United States and Canada and into Mexico and Europe. Fulfilling its mission of making nutritiously-created foods accessible, Borealis, through its food manufacturing company, has also begun expanding its available solutions into school, correctional facility and military food service.

“Borealis’ debut on the Nasdaq is an important step in our evolution as we pursue our mission of helping solve the problem of global food nutrition,” said Reza Soltanzadeh, Chief Executive Officer of Borealis. “Our company was founded in 2019 to address and solve a growing global crisis. Millions of people lack access to nutritious food at an affordable price, even in our own country. Our innovative, proprietary research and food technology allows us to translate this into shelf-stable, sustainable food that can satisfy people’s needs but at an affordable cost. Our commitment to our mission is unwavering; at the same time, we are enthusiastic about our growth outlook, stemming from our unique product offering and vast opportunities in retail and food service.”

“Additionally, our extensive distribution footprint and strategic marketing strategy centered around our partnership with Gordon Ramsay position us well for growth. We are excited about this milestone and look forward to reporting on the Company’s continued development.”

The Company’s Board of Directors is comprised of food industry and financial industry veterans, with specialties in branding, distribution, research and development, audit and investing. Oxus’ Chief Executive Officer, Kanat Mynzhanov, will join the Company’s Board of Directors.

The Company’s warrants will also commence trading on February 8, 2024 under the symbol “BRLSW.”

About Borealis

Borealis is an innovative food technology company with a mission to address global food security challenges through its research and development of highly nutritious and functional food products with great flavor that are both affordable and sustainable. The Company's focus on affordability and sustainability reflects its commitment to making a positive impact on both human life and the planet. Through its wholly-owned subsidiary, Palmetto Gourmet Foods, Borealis has created meals that are organic, vegan, vegetarian, Halal, Kosher, plant-based, egg free and dairy free, non-GMO, free of added MSG and TBHQ free. Borealis distributes its food products through the United States, Canada, Mexico and Europe.

Forward Looking Statements

Certain statements made in this release are "forward looking statements" within the meaning of the "safe harbor" provisions of the United States Private Securities Litigation Reform Act of 1995, including statements regarding the and future financial condition and performance of Borealis, and the expected financial impacts of the Business Combination (including future revenue and pro forma enterprise value), markets, and expected future growth and market opportunities. Forward-looking statements generally relate to management's current expectations, hopes, beliefs, intentions, strategies, plans, objections or projections about future events or Borealis' future financial condition or operating performance. When used in this press release, the words "estimates," "projected," "expects," "anticipates," "forecasts," "plans," "intends," "believes," "seeks," "may," "will," "should," "future," "propose" and variations of these words or similar expressions (or the negative versions of such words or expressions) are intended to identify forward-looking statements.

These forward-looking statements are not guarantees of future performance, conditions or results, and involve a number of known and unknown risks, uncertainties, assumptions and other important factors, many of which are outside Company's control, that could cause actual results or outcomes to differ materially from those discussed in the forward-looking statements. As such, readers are cautioned not to place undue reliance on any forward-looking statements and readers should not rely on these forward-looking statements as predictions of future events.

Forward-looking statements are based upon estimates and assumptions that, while considered reasonable by management of Borealis, are inherently uncertain. Factors that may cause actual result to differ from current expectations include, but are not limited to: the ability to meet stock exchange listing standards following consummation of the Business Combination; the risk that the Business Combination disrupts current plans and operations of Borealis as a result of the announcement and consummation of the Business Combination; the ability to recognize the anticipated benefits of the Business Combination, which may be affected by, among other things, competition, the ability of the combined company to grow and manage growth profitably, maintain relationships with customers and suppliers and retain its management and key employees; the costs related to the Business Combination; financial and operating performance; changes to existing applicable laws or regulations; the possibility that Borealis or the combined company may be adversely affected by economic, business, or competitive factors; Borealis' estimates of revenue, expenses, operating costs and profitability; the evolution of the markets in which Borealis competes and Borealis' ability to enter new markets effectively; and the ability of Borealis to implement its strategic initiatives and continue to innovate its existing services.

Readers should carefully consider the foregoing factors and other risks and uncertainties set forth in the sections entitled "Risk Factors" and "Forward-Looking Statements" set forth in Oxus' registration statement on Form S-4 filed with the Securities and Exchange Commission ("SEC") on January 12, 2024 and declared effective by the SEC on January 16, 2024, and other documents filed from time to time with the SEC by Oxus and, following completion of the Business Combination, by Borealis.

Forward-looking statements speak only as of the date they are made. Investors are cautioned not to put undue reliance on forward-looking statements and Borealis assumes no obligation and do not intend to update or revise these forward-looking statements, whether as a result of new information, future events or otherwise, except as required by securities and other applicable laws.

Contact: The Equity Group, Jeremy Hellman, Vice President, jhellman@equityny.com, (212) 836-9626; To arrange interviews with CEO, Reza Soltanzadeh, contact Henry Wong, Chief Marketing Officer, Borealis Foods, hwong@borealisfoods.com, (905) 278-2200

8th February 2024



Kenes Rakeshev (second from right) and Mr. Zahmoul (second from left) outside Nasdaq on 8th February 2024 when Oxus/Borealis was launched (BRLS).

19th February 2024

091

29th February 2024

Subject: Material Event - SPAC merger effective date 8 February 2024 -Nasdaq ticker BRLS
Date: Thursday, February 29, 2024 at 3:41:53 PM Greenwich Mean Time
From: Nadia
To: bmolyneux@29br.co.uk
CC: Zoë Bloom, Faye Simpson
Priority: High
Attachments: SEC_FORM_424(B)_PROSPECTUS_16JAN2024.pdf, SEC FILINGS.pdf, EVIDENCE_FROM_PROSPECTUS.docx, OXUS_TIMELINE.pdf, NASDAQ KEY DATA.pdf, Brent Note Nadia Zahmoul - ptr - 13 07 22.docx

Dear Brent,

THE FOLLOWING SHOWS THAT ONCE AGAIN, THE RESPONDENT IS TAKING ME AND THE COURT FOR FOOLS. Please send to the judge

The Oxus and Borealis M&A closed on 7 February 2024 and the Newco began trading on Nasdaq on 8 February 2024 under the ticker symbol BRSL.

1. The attached forms from the SEC provide documentary evidence of the following facts:
 - The respondent has 50,000 Founder shares
 - The grant value is \$0.33 per share
 - The shares are now listed on Nasdaq under ticker symbol BRLS
 - The current market price is \$9.20
 - The current price appreciation (book value): 2588%
 - **The current market value of the respondent's shares: \$443,500**
 - Lock-up period: one year
2. Warrants and Options granted to directors and founders have not been disclosed.
3. The Final Hearing before Justice MacDonald started on Monday 19th February. During his testimonies under oath the respondent represented that his shares in Oxus Acquisition Fund were worth zero. He also instructed his counsel to represent to the Court that his "shares in Oxus were on the side and were worth zero". This is a false representation. The shares owned by the respondent are worth \$443,500. The lock-up period does define the value of the shares. The respondent can borrow against the shares during the lock-up and can monetize them. He knows this. The key metric which determines the value of the shares is the **CLOSING OF THE MERGER TRANSACTION. This happened on 7 February 2024, 11 days before the trial started.**
THAT IS THE DATE WHICH DETERMINES THE VALUE OF THE

RESPONDENT'S SHARES.

-

With kind wishes,
Nadia

BV20D01752

Fraud Unravels All

Veritas Numquam Perit

UK: +44 79 1332 8615

US: +1 424 426 9226

Subject: Draft email for review
Date: Thursday, February 29, 2024 at 4:51:36 PM Greenwich Mean Time
From: Faye Simpson
To: Nadia
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, SEC_FORM_424(B)_PROSPECTUS_16JAN2024.pdf, SEC FILINGS.pdf

Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your clients possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.

Kind regards,

Faye

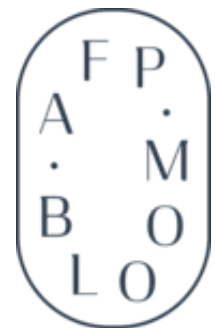
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | M: 07425 854346

AFP Bloom LLP | 106-108 Wigmore Street, London, W1U 3LR

www.afpbloom.com



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[Evolve:b9f54239-f512-4fd1-8aa8-a780f6a5c9b0]

Subject: Re: Draft email for review
Date: Thursday, February 29, 2024 at 5:01:15 PM Greenwich Mean Time
From: Nadia
To: Faye Simpson
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png

Dear Faye,

This is agreed. Thank you.

Nadia

On 29/02/2024, 4:54 PM, "Faye Simpson" <faye.simpson@afpbloom.com> wrote:

Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your clients possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.

Kind regards,

Faye

Faye Simpson | Associate
faye.simpson@afpbloom.com
T: 020 7409 1222 | **M:** 07425 854346
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Subject: Draft email for review
Date: Thursday, February 29, 2024 at 4:51:36 PM Greenwich Mean Time
From: Faye Simpson
To: Nadia
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, SEC_FORM_424(B)_PROSPECTUS_16JAN2024.pdf, SEC FILINGS.pdf

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We look forward to hearing from you.

Kind regards,

Faye

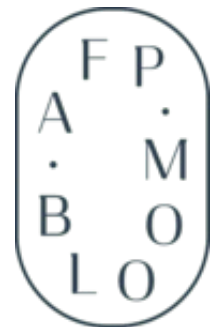
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425 854346

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[Evolve:b9f54239-f512-4fd1-8aa8-a780f6a5c9b0]

4th March 2024

Subject: RE: Zahmoul and Zahmoul
Date: Monday, March 4, 2024 at 12:46:24 PM Greenwich Mean Time
From: Faye Simpson
To: Valeria Gampl
CC: Zoë Bloom, Lucy Birch
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png

Dear Valeria,

We would be grateful for a response to our email below.

Kind regards,

Faye

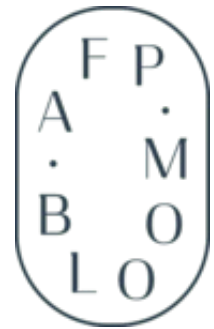
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425 854346

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From: Faye Simpson

Sent: Thursday, February 29, 2024 5:07 PM

To: Valeria Gampl <Valeria.Gampl@stowefamilylaw.co.uk>

Cc: Zoë Bloom <Zoe.Bloom@afpbloom.com>; Lucy Birch <Lucy.Birch@stowefamilylaw.co.uk>

Subject: Zahmoul and Zahmoul

Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.

Kind regards,

Faye

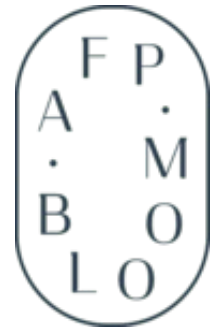
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425 854346

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[Evolve:9ae956e8-3883-4b8a-b1ab-d8f490c543c2]

1st Email to Judge

Re. Perjury

6th March 2024

Subject: Zahmoul and Zahmoul
Date: Wednesday, March 6, 2024 at 2:28:41 PM Greenwich Mean Time
From: Faye Simpson
To: Valeria Gampl
CC: Zoë Bloom, Lucy Birch
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, RE: Zahmoul and Zahmoul.eml

Dear Valeria,

We write further to our emails of 29 February 2024 at 17:07, and 4 March 2024 at 12:46, as attached.

We request a response to our client's perfectly reasonable queries by the end of today. Failing this, our client reserves the right to make an application for the evidence to be reopened in relation to this issue.

We look forward to hearing from you.

Kind regards,

Faye

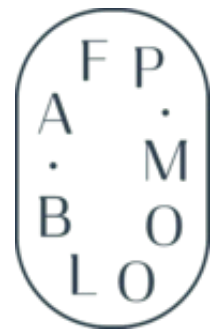
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425854346

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[Evolve:dcd4720d-6c2c-4adb-a3e6-d2c16de30858]

From: Barbara Marques <Barbara.Marques@stowefamilylaw.co.uk>
Sent: Wednesday, March 6, 2024 3:51 PM
To: Faye Simpson <faye.simpson@afpbloom.com>
Cc: Lucy Birch <Lucy.Birch@stowefamilylaw.co.uk>
Subject: RE: Zahmoul and Zahmoul

Dear Faye

Thank you for your emails.

Valeria is now out of office. May you please ensure that all future correspondence is sent directly to our Lucy Birch, who has taken over this matter, with myself in copy.

We will seek to revert to you more substantially tomorrow.

Kind regards
Barbara

Barbara Marques
Solicitor, London

Subject: FW: Zahmoul and Zahmoul
Date: Wednesday, March 6, 2024 at 4:08:49 PM Greenwich Mean Time
From: Faye Simpson
To: Nadia
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, image010151.png, image651182.png, image351408.png, image352789.png, image719520.png, image878120.png, image829390.png, image481553.jpg

Dear Nadia,

Please see the below response received from Stowe. I received Lucy's out of office and they have said they will respond substantially tomorrow.

Given that they have put us on notice that they will reply substantially tomorrow, you may choose to wait for their reply before submitting the D11.

Kind regards,

Faye

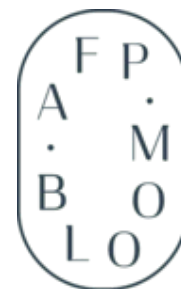
Faye Simpson | Associate

faye.simpson@afpbloom.com

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From: Barbara Marques <Barbara.Marques@stowefamilylaw.co.uk>

Sent: Wednesday, March 6, 2024 3:51 PM

To: Faye Simpson <faye.simpson@afpbloom.com>

Cc: Lucy Birch <Lucy.Birch@stowefamilylaw.co.uk>

Subject: RE: Zahmoul and Zahmoul

Dear Faye

Thank you for your emails.

Valeria is now out of office. May you please ensure that all future correspondence is sent directly to our Lucy Birch, who has taken over this matter, with myself in copy.

We will seek to revert to you more substantially tomorrow.

Kind regards

Barbara

Subject: BV20D01752 Zahmoul vs Zahmoul - FW: Material Event - SPAC merger effective date 8 February 2024 - Nasdaq ticker BRLS

Date: Wednesday, March 6, 2024 at 5:23:54 AM Greenwich Mean Time

From: Nadia

To: Knight, Anita

CC: Alexis Campbell KC, bmolyneux@29br.co.uk

Priority: High

Attachments: 1. Material Event - SPAC merger effective date 8 February 2024 -Nasdaq ticker BRLS.pdf, 2. SEC FILINGS (EXCERPTS).docx, 3. SEC_PROSPECTUS_16JAN2024.pdf, 4. OXUS_TIMELINE.pdf, 5. Brent Note Nadia Zahmoul - ptr - 13 07 22.docx

Dear Anita,

I hope you are well.

I would be most grateful if you could please pass this on to His Lordship.

This is material to the case and to the Final Hearing which took place before His Lordship on 19th - 28th February 2024.

I am copying counsels on both sides.

Thank you very much.

With my kind wishes,
Nadia

.....

Your Lordship,

I am sincerely sorry to trouble Your Lordship so soon after the Final Hearing. The matter of **Oxus Acquisition Corp.** is very material to the case and came to my attention almost immediately after the trial ended. Despite writing to the respondent one week ago to request an explanation, we have not received a reply.

This open-ended situation is very harmful to me. I feel powerless, vulnerable, and extremely distressed. I find it impossible to put the children's and my future into the respondent's hands and wait without knowing how long I must wait.

I put the matter into Your Lordship's hands and if one week is not enough, I am happy to wait as long as Your Lordship would like me to.

At the Final Hearing and under oath, the respondent represented that his shares in Oxus Acquisition Corp. were "**worth zero**". In the asset schedule submitted for the Final Hearing, he reported 50,000 shares at a **value of \$0.00.**

This is factually incorrect and constitutes a false statement.

- a. The respondent was appointed to the **Board of Directors of Oxus Acquisition**

Corp. on 1st June 2022 and

- b. On **7th June 2022** Form 3 “Initial Statement of Beneficial Ownership of Securities” was filed with the SEC.
- c. **PAGE 340 of SEC PROSPECTUS (attached): “On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination)”.**
- d. The Founder Shares were granted **subject to a performance condition (i.e., the occurrence of a Business Combination).**
- e. **The Business Combination occurred on 7th February 2024.**
- f. Newco began trading on **Nasdaq on 8th February 2024 under the ticker symbol BRLS.**
- g. The Founder Shares **lock-up period** is defined **in page 43** of the Prospectus filed with the SEC (attached) and in the attached SEC Filings Excerpts.

Conclusion:

The Final Hearing started on 19th February 2024.

At the time of the Final Hearing and when he testified under oath, the respondent knew (i) that the Business Combination had occurred and (ii) that the value of his 50,000 Founders Shares was not zero.

Email sent to the respondent’s solicitors on 29th February 2024 (attached):

“Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your clients possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.”

Respectfully,

Nadia Zahmoul

On 29/02/2024, 3:41 PM, "Nadia" <nadia@rosekross.com> wrote:

Dear Brent,

THE FOLLOWING SHOWS THAT ONCE AGAIN, THE RESPONDENT IS TAKING ME AND THE COURT FOR FOOLS. Please send to the judge

The Oxus and Borealis M&A closed on 7 February 2024 and the Newco began trading on Nasdaq on 8 February 2024 under the ticker symbol BRSL.

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 - The current market price is \$9.20
 - The current price appreciation (book value): 2588%
 - **The current market value of the respondent's shares: \$443,500**
 - Lock-up period: one year
2. Warrants and Options granted to directors and founders have not been disclosed.
3. The Final Hearing before Justice MacDonald started on Monday 19th February. During his testimonies under oath the respondent represented that his shares in Oxus Acquisition Fund were worth zero. He also instructed his counsel to represent to the Court that his "shares in Oxus were on the side and were worth zero". This is a false representation. The shares owned by the respondent are worth \$443,500. The lock-up period does not define the value of the shares. The respondent can borrow against the shares during the lock-up and can monetize them. He knows this. The key metric which determines the value of the shares is the **CLOSING OF THE MERGER TRANSACTION. This happened on 7 February 2024, 11 days before the trial started.**
THAT IS THE DATE WHICH DETERMINES THE VALUE OF THE RESPONDENT'S SHARES.

-

With kind wishes,
Nadia

BV20D01752
Fraud Unravels All
Veritas Numquam Perit
UK: +44 79 1332 8615
US: +1 424 426 9226

OXUS ACQUISITION CORP. (excerpts)

300/26 Dostyk Avenue

Almaty, Kazakhstan 050020

PAGE 30:

The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;

- the fact that given the differential in the purchase price that the Sponsor paid for the Founder Shares as compared to the price of the Public Units sold in the IPO and the substantial number of Class A Shares that the Sponsor will receive upon conversion of the Founder Shares in connection with the Business Combination, **the Sponsor may earn a positive rate of return on their investment even if the Class A Shares trade below the price initially paid for the Public Units in the IPO** and the public shareholders experience a negative rate of return following the completion of the Business Combination;

PAGE 43: Lock-Up Agreements

In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.

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Directors and Officers

The below lists Oxus' current officers and directors.

Name	Age	Title
Kenges Rakishev	44	Non-executive Chairman and Director
Kanat Mynzhanov	40	Chief Executive Officer and Director
Askar Mametov	40	Chief Financial Officer
Christophe Charlier	51	Director
Karim Zahmoul	58	Director
Shiv Vikram Khemka	61	Director

Karim Zahmoul has served as one of Oxus' independent directors since June 2022. Mr. Zahmoul has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm's international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College.

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Number and Terms of Office of Officers and Directors

The Oxus Board consists of five members. The Oxus Board is divided into three classes, with only one class of directors being elected in each year, and with each class (except for those directors appointed prior to Oxus' first annual meeting of stockholders) serving a three-year term. The term of office of the first class of directors, consisting of **Karim Zahmoul**, will expire at Oxus' first annual meeting of shareholders. The term of office of the second class of directors, consisting of Christophe Charlier and Shiv Vikram Khemka, will expire at Oxus' second annual meeting of

shareholders. The term of office of the third class of directors, consisting of Kenges Rakishev and Kanat Mynzhanov, will expire at Oxus' third annual meeting of shareholders.

PAGE 248:

Audit Committee

Oxus gas established an audit committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The audit committee's duties, which are specified in Oxus' Audit Committee Charter, include, but are not limited to:

- reviewing and discussing with management and the independent auditor the annual audited financial statements, and recommending to the board whether the audited financial statements should be included in Oxus' Form 10-K;
- discussing with management and the independent auditor significant financial reporting issues and judgments made in connection with the preparation of Oxus' financial statements;
- discussing with management major risk assessment and risk management policies;
- discussing with management major risk assessment and risk management policies;
- monitoring the independence of the independent auditor;
- verifying the rotation of the lead (or coordinating) audit partner having primary responsibility for the audit and the audit partner responsible for reviewing the audit as required by law;
- reviewing and approving all related party transactions;
- inquiring and discussing with management Oxus' compliance with applicable laws and regulations;
- pre-approving all audit services and permitted non-audit services to be performed by Oxus' independent auditor, including the fees and terms of the services to be performed;
- appointing or replacing the independent auditor;
- determining the compensation and oversight of the work of the independent auditor (including resolution of disagreements between management and the independent auditor regarding financial reporting) for the purpose of preparing or issuing an audit report or related work;
- establishing procedures for the receipt, retention and treatment of complaints received by Oxus regarding accounting, internal accounting controls or reports which raise material issues regarding Oxus' financial statements or accounting policies; and

- approving reimbursement of expenses incurred by Oxus' management team in identifying potential target businesses.

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Financial Experts on Audit Committee

The audit committee will at all times be composed exclusively of "independent directors" who are "financially literate" as defined under the Nasdaq's listing standards. The Nasdaq's standards define "financially literate" as being able to read and understand fundamental financial statements, including a company's balance sheet, income statement and cash flow statement.

In addition, Oxus must certify to the Nasdaq that the committee has, and will continue to have, at least one member who has past employment experience in finance or accounting, requisite professional certification in accounting, or other comparable experience or background that results in the individual's financial sophistication. The board of directors has determined that Christophe Charlier qualifies as an "audit committee financial expert," as defined under rules and regulations of the SEC.

Nominating Committee

Oxus has established a nominating committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The nominating committee is responsible for overseeing the selection of persons to be nominated to serve on the Oxus Board. The nominating committee considers persons identified by its members, management, shareholders, investment bankers and others.

Guidelines for Selecting Director Nominees

The guidelines for selecting nominees, which are specified in the Nominating Committee Charter, generally provide those persons to be nominated:

- **should have demonstrated notable or significant achievements in business, education or public service;**
- should possess the requisite intelligence, education and experience to make a significant contribution to the board of directors and bring a range of skills, diverse perspectives and backgrounds to its deliberations; and
- **should have the highest ethical standards, a strong sense of professionalism and intense dedication to serving the interests of the shareholders.**

The Nominating Committee will consider a number of qualifications relating to management and leadership experience, background and integrity and professionalism in evaluating a person's candidacy for membership on the board of directors. The nominating committee may require certain skills or attributes, such as financial or accounting experience, to meet specific board needs that arise from time to time and will also consider the overall experience and makeup of its

members to obtain a broad and diverse mix of board members. The nominating committee does not distinguish among nominees recommended by shareholders and other persons.

PAGE 250:

Compensation Committee

Oxus has established a compensation committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The compensation committee's duties, which are specified in Oxus' Compensation Committee Charter, include, but are not limited to:

- reviewing and approving on an annual basis the corporate goals and objectives relevant to Oxus' Chief Executive Officer's compensation, evaluating Oxus' Chief Executive Officer's performance in light of such goals and objectives and determining and approving the remuneration (if any) of Oxus' Chief Executive Officer based on such evaluation;
- reviewing and approving the compensation of all of Oxus' other executive officers;
- reviewing Oxus' executive compensation policies and plans;
- implementing and administering Oxus' incentive compensation equity-based remuneration plans;
- assisting management in complying with Oxus' proxy statement and annual report disclosure requirements;

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- approving all special perquisites, special cash payments and other special compensation and benefit arrangements for Oxus' executive officers and employees;
- if required, producing a report on executive compensation to be included in Oxus' annual proxy statement; and
- reviewing, evaluating and recommending changes, if appropriate, to the remuneration for directors.

Code of Ethics

Oxus has adopted a code of ethics that applies to all of Oxus' executive officers, directors and employees. The code of ethics codifies the business and ethical principles that govern all aspects of Oxus' business.

Legal Proceedings

As of the date of this proxy statement/prospectus, to the knowledge of Oxus' management, there was no material litigation, arbitration or governmental proceeding pending against Oxus or any

members of Oxus' management team in their capacity as such, and Oxus and the members of Oxus' management team have not been subject to any such proceeding.

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Unless otherwise indicated, Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. **The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus.** The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—

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Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*

Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)						
	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.
- (2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company (“Meteora Capital”) with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the “Meteora Funds”); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the “Funds”), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the “Adviser”). Ari Glass is the Managing Member of the Adviser. Certain subadvisors (“Subadvisors”) have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.
- (11) Does not include shares to be transferred by the Sponsor pursuant to the incentive agreements upon successful completion of the Business Combination.
- (12) Represents securities held by Belphar. Ltd., of which Shukhrat Ibragimov is the controlling shareholder.

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On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share.** The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares

is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.

Other SEC Filings

As filed with the Securities and Exchange Commission on **January 11, 2024.**

Registration No. 333-273967

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

Amendment No. 5

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, Mr. Karim **Zahmoul** was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim **Zahmoul** by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim **Zahmoul** on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.

Founder Shares are subject to lock-up until (i) with respect to 50% of the Founder Shares, the earlier of one year after the date of the consummation of the initial Business Combination and the date on which the closing price of the Class A ordinary shares equals or exceeds \$12.00 per share (as adjusted for share splits, share dividends, reorganizations and recapitalizations) for any 20 trading days within a 30-trading day period commencing after the consummation of the initial Business Combination and (ii) with respect to the remaining 50% of the Founder Shares, the one-year anniversary of the consummation of the initial Business Combination. Notwithstanding the foregoing, the Founder Shares will be released earlier if, subsequent to the initial Business Combination, the Company consummates a liquidation, merger, share exchange or other similar transaction which results in all of the shareholders having the right to exchange their ordinary shares for cash, securities or other property.

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on **January 11, 2024**.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	January 11, 2024
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	January 11, 2024
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	January 11, 2024
<u>*</u> Christophe Charlier	Director	January 11, 2024
<u>*</u> Karim Zahmoul	Director	January 11, 2024
<u>*</u> Shiv Vikram Khemka	Director	January 11, 2024
*By: <u>/s/ Kanat Mynzhanov</u> Name: Kanat Mynzhanov Title: Attorney-in-Fact		

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AUTHORIZED REPRESENTATIVE IN THE UNITED STATES

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on January 11, 2024.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

As filed with the Securities and Exchange Commission on **January 5, 2024.**
Registration No. 333-273967

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

Amendment No. 4
to
Form S-4
Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.
(Exact name of registrant as specified in its charter)

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on January 5, 2024.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov
Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

<u>Signature</u>	<u>Title</u>	<u>Date</u>
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	January 5, 2024
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	January 5, 2024
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	January 5, 2024
<u>*</u> Christophe Charlier	Director	January 5, 2024
<u>*</u> Karim Zahmoul	Director	January 5, 2024
<u>*</u>	Director	January 5, 2024

Shiv Vikram Khemka

* By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

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AUTHORIZED REPRESENTATIVE IN THE UNITED STATES

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on **January 5, 2024.**

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

SCHEDULE 14A

Information Required in Proxy Statement
Schedule 14A Information

Proxy Statement Pursuant to Section 14(a) of the
Securities Exchange Act of 1934

Filed by the Registrant ☒

Filed by a Party other than the Registrant ☐

Check the appropriate box:

☒ Preliminary Proxy Statement

☐ Confidential, for Use of the Commission Only (as permitted by Rule 14a-6(e)(2))

☐ Definitive Proxy Statement

☐ Definitive Additional Materials

☐ Soliciting Material Pursuant to §240.14a-12

OXUS ACQUISITION CORP.

(Name of Registrant as Specified In Its Charter)

BENEFICIAL OWNERSHIP OF SECURITIES

The following table sets forth information available to us as of November 3, 2023, with respect to the Ordinary Shares held by:

- each person known by us to be the beneficial owner of more than 5% of the Ordinary Shares;
- each of our executive officers, directors and director nominees that beneficially owns ordinary shares; and
- all our executive officers and directors as a group.

Beneficial ownership is determined according to the rules of the SEC, which generally provide that a person has beneficial ownership of a security if he, she or it possesses sole or shared voting or investment power over that security, including options and warrants that are currently exercisable or will become exercisable within 60 days. Except as described in the footnotes below and subject to applicable community property laws and similar laws, we believe that each person listed below has sole voting and investment power with respect to such shares.

In the table below, percentage ownership is based on 6,561,968 Ordinary Shares outstanding as of November 3, 2023, including 3,749,468 Class A Ordinary Shares and 2,812,500 Class B Ordinary Shares. Voting power represents the combined voting power of Ordinary Shares owned beneficially by such person. On all matters to be voted upon, the holders of the Ordinary Shares vote together as a single class. The table below does not include any Ordinary Shares underlying our outstanding warrants because such securities are not exercisable within 60 days of November 3, 2023.

Name and Address of Beneficial Owner⁽¹⁾	Number of Shares Beneficially Owned	Percentage of Outstanding Ordinary Shares
Oxus Capital PTE. LTD. ⁽²⁾	4,162,500 ⁽³⁾	63.43%
Kenges Rakishev ⁽²⁾	4,162,500 ⁽³⁾	63.43%
Kanat Mynzhanov	—	—
Askar Mametov	—	—
Karim Nouredine Zahmoul	50,000	*
Christophe Charlier	50,000	*
Shiv Vikram Khemka	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.72%

* Less than one percent.

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is 300/26 Dostyk Avenue, Almaty 050020.
- (2) Represents securities held by Oxus Capital PTE. LTD., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our sponsor.
- (5) Interests shown include Founder Shares, including 2,632,500 Class B Ordinary Shares and 1,500,000 Class A Ordinary Shares. The Class B Ordinary Shares are convertible into Class A Ordinary Shares on a one for one basis, subject to adjustment.

2nd Email to Judge

Re. Perjury

7th March 2024

Subject: Urgent - BV20D01752 - FALSE REPRESENTATIONS MADE DURING TRIAL
Date: Thursday, March 7, 2024 at 4:49:38 PM Greenwich Mean Time
From: Nadia
To: Knight, Anita
CC: Valeria Gampl
Attachments: BV20D01752 Applicant: Nadia Zahmoul Respondent: Karim Zahmoul.eml, D-11_OXUS_FALSE_REPRESENTATIONS.pdf, 3. SEC_PROSPECTUS_16JAN2024.pdf

Dear Anita,

I hope you are well.

As you probably know, I am acting in person as I no longer have the funds to pay for my legal costs. I attach the email sent yesterday with the notice of acting in person. I would be most grateful if you could please pass this on to His Lordship as this is an urgent matter which is material to the case.

With my kind wishes,
Nadia

=====
=====

Your Lordship,

This is not an application to reopen the evidence.

I am not introducing any new evidence. I am also acting in person as no amount of money can be enough to pay for the extraordinary amount of work necessitated to untangle the respondent's transactions, disclosures, statements and etc.

I would like to draw the Court's attention to the false representations the respondent made under oath with regards to Oxus Acquisition Corp. during the Final Hearing.

The trial started on 19th February 2024. On that day, the respondent knew that the Business Combination had been consummated on 7th February 2024. The Business Combination date is crucial as it is the trigger for the respondent's 50,000 shares to become valuable.

The value of his Oxus shares is **binary**: it is zero if there is no Business Combination and it is marked-to-market starting on the exact day the Business Combination is effective, which was 7th February 2024, 10 days before the trial started.

Therefore, the respondent should have assigned a value of approximately \$500,000 to the Oxus shares on ES2 starting on the 7th February 2024 and he should not have instructed his counsel to state that the "**Oxus shares are worth nothing**". In fact, he

should have replaced Oxus shares with BRLS shares and he should have disclosed the number of BRLS shares he now owns given the exchange rate and the redemptions. Furthermore, the respondent has never told the Court how many warrants he received.

When he appeared before Your Lordship on 19th February 2024, the respondent knew that the Business Combination had been consummated on 7th February 2024 and he knew that on 8th February 2024, the newly merged company began trading on Nasdaq under the ticker symbol BRLS. Oxus was retired from Nasdaq on that day.

He assigned a value of zero to the shares on his ES2 schedule dated 19th February 2024. This is an intentional false representation. It is absolutely false and dishonest.

He told the Court that his Oxus shares were “**worth nothing**”. This is a false representation, and this is dishonest.

In summary, during the Final Hearing before Your Lordship, the respondent intentionally misled the Court and me, he made false representations to the Court under oath, he mismarked his ES2 schedule, and he instructed his counsel to make factually incorrect statements in her submissions.

I attach a comprehensive review of what the respondent did, what he knew, when he knew it, and what he told the Court.

As a director of Oxus, the respondent signed the SEC filings of January and February 2024, so he cannot say that he was “overwhelmed” and “stressed”.

My previous solicitors emailed the respondent’s solicitors on 29th February 2024 requesting an explanation. I have not received a reply.

Your Lordship, I would like to say one more time that there is **no new evidence** in the attached statement. My only objective is to bring this to your attention as it is very material to my case. The statement is simply a reconstruction of the respondent’s tortuous and deceitful acts and how they fail to stand up to scrutiny.

Respectfully,

Nadia Zahmoul

BV20D01752

Veritas Numquam Perit

UK: +44 79 1332 8615

US: +1 424 426 9226

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Application notice

To be completed by the relevant party	
Name of court Royal Courts of Justice	Case no. <u>BV20D01752</u>
Name of Petitioner/Applicant Nadia Zahmoul	
Name of Respondent Karim Nouredine Zahmoul	
Name of Co-Respondent (if applicable)	
Solicitor's fee account no.	
Help with Fees – Ref no. (if applicable) – –	
H	W
F	

If completing this form by hand, please use **black ink and BLOCK CAPITAL LETTERS** and tick the boxes that apply.

1. Please state your name or, if you are a solicitor, the name of your firm.

Nadia Zahmoul

2. Are you the ☐Petitioner ☒Applicant ☐Respondent ☐Co-Respondent ☐Solicitor in

the main proceedings, or

Other?
(if Other, please specify)

If you are a solicitor, whom do you represent?

Please see attached draft order.



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3. What order are you asking the court to make and why?

Please attach a draft copy of the order you are applying for.

Please see attached draft order.

This application may be considered by a judge on the information you have set out in your application notice. The judge may make an order on that information, without a hearing. However, any party who objects to an order made in this way may apply to the court within 7 days of it being made, for a hearing, at which all parties can attend, when the application will be reconsidered.

1. Are there any reasons why this application should not be dealt with on paper by a judge?

☐ Yes. It should not be dealt with on paper by a judge because

☒ No

Domestic Abuse Act 2021

Provisions in the Domestic Abuse Act 2021 have the effect of preventing an individual accused of abuse from questioning in person a party or witness in the case who is the victim of the abuse, and also prevents a victim of abuse from questioning in person the accused individual in specified circumstances.

If the court directs that the proceedings be listed for a hearing where oral evidence may be given, form **EX740** (person making the abuse accusation) or form **EX741** (person accused of abuse) 'Application and information needed by the court to consider whether to prevent (prohibit) questioning (cross-examination) in person' may need to be completed so that the court can consider whether questioning in person should be prevented. The court will send the appropriate form with the court order.

Note 3: Set out what order you are applying for and why; e.g. to adjourn the hearing because..., to apply for leave to issue my divorce application without my marriage certificate because... etc. If you are applying to vary an existing order or to re-activate proceedings you should enter the details here. A draft copy of any order you are applying for must be attached to your application. The draft should state the amount of any costs to be paid by the other party and a brief calculation of how it was arrived at.

Note 4:
The court will only deal with the application 'without a hearing' in the following circumstances:

- where all the parties agree to the terms of the order being asked for;
- where all the parties agree that the court should deal with the application without a hearing; or
- where the court does not consider that a hearing would be appropriate.

For Deemed Service applications for divorce, Questions 5–9 are not required. See guidance notes for more information.

2. Are there any reasons why this application should not be dealt with at a telephone hearing?

☒ Yes. This hearing should not be dealt with at a telephone hearing because

The applicant has impaired hearing.
This application can be dealt with in writing.

☐ No

3. How long do you think the hearing will last?

hours minutes

4. Is this time estimate agreed by all parties?

☐ Yes

☒ No

5. Give details of any fixed hearing date or period.

• •
Final Hearing took place before His Lordship Justice MacDonald from
19th to 28th February 2024.

6. Does this application need to be heard by a specific judge/level of judge?

☒ Yes. This case is reserved to **His Lordship Justice MacDonald**

☐ No

Deemed Service application

(These applications do not require a hearing.)

The applicant can apply to the court for an application for deemed service when they have evidence the respondent has received the divorce application but has not filed an acknowledgment of service with the court. Evidence can be written confirmation such as a letter, email, or text.

Note 5: Indicate in a covering letter any dates that you are unavailable to attend within the next six weeks.

Telephone hearings are only available in applications where at least one of the parties involved in the case is legally represented.

Not all applications will be suitable for a telephone hearing and the court may refuse your request

Note 6: If you do not know how long the hearing will take do not guess, instead leave these boxes blank.

Note 7: If your case has already been allocated a hearing date or trial period please insert details of those dates in the box.

Note 8: Enter the details if there is a requirement for your case to be heard

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7. Who should be served with this application?

Give names, addresses, and email addresses: (If necessary, please continue on a separate sheet.

Mr. Karim Nouredine Zahmoul
c/o Crisp & Co
No 1 Poultry
London EC2R 8EJ

Note 10: Please indicate in the box provided who you want the court to send a copy of the application to.

8. What information will you be relying on?

- ☒ the attached statement.
- ☐ the divorce/dissolution/nullity/(judicial) separation application.
- ☐ the statement in support of the divorce/dissolution/nullity/(judicial) separation.
- ☐ the evidence set out in the box below:

(If necessary, please continue on a separate sheet)

Please see Affidavit in separate sheet.

Note 11: In this section please set out the information you want the court to take into account in support of the application you are making. If you wish to rely on:

- **a witness statement,** tick the first box and attach the statement to the application notice. A witness statement form is available on request from the court office.
- **a statement of case,** tick the second box if you intend to rely on your particulars of claim or defence in support of your application.
- **written evidence on this form,** tick the fourth box and enter details in the space provided. You must also complete the statement of truth. Proceedings for contempt of court may be brought against a person who signs a statement of truth without an honest belief in its truth.

Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☒ **I believe** that the facts stated in this form and any continuation sheets are true.

☐ **The applicant** believes that the facts stated in this form and any continuation sheets are true. **I am authorised** by the applicant to sign this statement.

☐ **The respondent** believes that the facts stated in this form and any continuation sheets are true. **I am authorised** by the respondent to sign this statement.

Signature

N. Zahmoul.

☒ Applicant

☐ Respondent

☐ Applicant's legal representative (as defined by FPR 2.3(1))

☐ Respondent's legal representative (as defined by FPR 2.3(1))

Date

Day

Month

Year

7th

03

2024

Full name

Nadia Zahmoul

Name of the legal representative's firm

Acting in Person

If signing on behalf of firm or company give position or office held

Address details for service of documents

Please only complete this section if you wish to change your address for service. The court will use the address for service you provided in your divorce, dissolution or (judicial) separation proceedings if you do not provide one here.

Do you wish to keep your contact details confidential from your spouse or civil partner?

☐ Yes. Please complete the separate **C8** form with your details in order to do this.

☒ No

If you want to keep your contact details confidential, **do not complete this question**. Please complete form **C8**.

Building and street

3093 Arrowhead Rd

Second line of address

Town or city

Teton Village

County (optional)

Wyoming

Country

U.S.A.

Postcode

8 3 0 2 5

Email address

N a d i a @ r o s e k r o s s
.
c o m

Phone number (optional)

0 7 9 1 3 3 2 8 6 1 5

If the court needs to contact you, it will be able to do so more quickly if you provide your email address and phone number.

The email address should not be the same as the one given for your husband/ wife/civil partner.

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Court fee

What you need to pay

the court fee is

£167

How to pay the court fee

☐ I have not included payment because

☐ I have applied for Help with Fees online and my reference number is

H	W	F							
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☐ I am applying for Help with Fees, see attached form **EX160**

☐ Other – please explain why

☒ **A debit or credit card payment**

☒ I will pay over the phone.

☐ please email me details on how to pay, my email address is

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☐ I attach a **cheque or postal order**, made payable to 'HMCTS'

☒ **Fee account details – for use by legal professionals**

P	B	A	0	0	9	4	3	0	3
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Your reference (if

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Court fee

You can find the current fee in leaflet EX50 Civil and Family Court Fees which can be downloaded from:

<https://www.gov.uk/government/collections/court-and-tribunal-forms>

If you cannot afford the court fee

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income.

You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

A debit or credit card payment. To pay the court fee over the phone, you should call the Court that is currently managing your case.

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.

Please send your completed application and copies to the court that is managing your case.

The addresses can be found here:

<https://www.find-court-tribunal.service.gov.uk>

Summary

This is not an application to reopen the evidence, nor is it an application to submit new evidence. In fact, this is not even an application because I am not seeking anything. This is a statement I am addressing to the Court because the respondent has made a mockery of the court process and his brazen arrogance and contempt for court were prevalent even at the Final Hearing.

In this note, I will argue and demonstrate that the respondent made false representations under oath during the Final Hearing, and intentionally misled the Court. Furthermore, he instructed his counsel to make statements which he knew to be false. I don't need the approval of the respondent's legal representatives because I am not asking to reopen the evidence. I am asking the Court to recall what the respondent said last week and compare it to the facts. Nothing more.

In this statement, I will demonstrate that the respondent was dishonest at the trial, he intentionally misled the Court, made false statements under oath, mismarked and misreported assets on form ES2, and continued to do so until the very end of these proceedings. Not even the solemnity of the Final Hearing, the witness stand, or the immense privilege of addressing the Court dampened his vindictiveness, his malevolence, and his spiteful determination to "punish" me. He has shown a complete lack of moral and human decency.

Oxus SPAC: False Representations at the Final Hearing (19th – 28th February, 2024)

The ES2 asset schedule the respondent submitted for the Final Hearing identifies Oxus Acquisition Corp. as a "non-matrimonial business interest" and attributes a fair market value of "zero" to the 50,000 Oxus shares as of 19th February 2024.

This is a false representation.

The respondent instructed his counsel to state in closing submissions at the Final Hearing that "the Oxus shares are worth nothing".

This is false representation.

There are **three key dates** which determine the value of the respondent's Oxus shares: the Grant date, the Trigger date, and the Lock-Up period.

Please note a very important point: the critical difference between Vesting Period vs Lock-Up Period is the legal ownership of the asset. Unvested shares are securities for which one does not have legal ownership. Legal economic ownership accrues incrementally over time as the shares vest. By contrast, Lock-Up Period applies to shares which are already fully owned by the individual. The respondent has full ownership of the 50,000 shares in Oxus. He may be restricted as to when he can sell them, but there is no question that he has full legal ownership of the shares as of the Grant date,

and the shares became valuable on the date of the Business Combination.

1. The Founders shares were granted to the respondent on 7th June 2022

The following paragraph is an excerpt from page 340 of the SEC Proxy Statement and Prospectus dated 16 January 2024 which is included in the exhibits to this application.

*“On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share.** The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model”.*

The following paragraph is an excerpt from page 30 of the SEC Proxy Statement and Prospectus dated 16 January 2024. It states that the value of the respondent's beneficial ownership in Oxus is approximately \$565,000 (\$1,695,000/3).

*“The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares”.*

2. ... Subject to a Performance Condition (i.e. the occurrence of a Business Combination).

Thus, the trigger for assigning a fair value to the Founders shares (using Monte Carlo or Black Scholes simulation models) is the Performance Condition, i.e. the closing of the Business Combination which occurred on **7th February 2024**. If the merger transaction does not close, the Founders shares become worthless. If the merger transaction closes, then the Founders shares become valuable, and their fair market value can be calculated every day and marked-to-market as evidenced in the company's prospectus and SEC filings.

The Business Combination was consummated on 7th February 2024 and on 8th February 2024 Newco began trading on Nasdaq under the ticker symbol BRLS.

Fig. 1 below shows the actual beneficial ownership of Oxus Shares as of September 30, 2023, and pro forma information regarding the beneficial ownership of New Borealis Common Shares on the date of the Closing. Oxus believes that all persons named in the table have sole voting and

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investment power with respect to all shares beneficially owned by them. The following table *does not reflect record or beneficial ownership of Oxus' warrants* because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus. The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Fig 1: Beneficial ownership: Directors, Executive Officers and Sponsor of Oxus (page 287)

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

(1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.

(2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.

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- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company ("Meteora Capital") with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the "Meteora Funds"); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the "Funds"), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the "Adviser"). Ari Glass is the Managing Member of the Adviser. Certain subadvisors ("Subadvisors") have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.

3. Third Key Date: Lock-Up Agreements

The following paragraph is an extract from Form 8-K filed on 7th February 2024 with the SEC. It defines the Lock-Up periods as follows:

*"At Closing, the holders entered into Lock-Up Agreements, pursuant to which (A) 50% of the New Borealis Common Shares held by either a director, officer, or 5% or greater holder party to such agreements (the "**Restricted Securities**") will be locked-up during the period commencing from Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of New Borealis Common Shares equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from Closing and ending on 12 months after the date of Closing, subject to certain specifications and exceptions".*

To sum up, the trigger dates are as follows:

- a) Grant date: 7th June 2022
- b) Shares become valuable on Merger date: 7th February 2024
- c) Shares can be sold according to the Lock-Up schedule.

Conclusion:

On 19th February 2024 when the Final Hearing for BV20D01752 started, the respondent knew that the value of the Oxus shares was NOT zero because the Business Combination had already been consummated on 7th February 2024, and because 7th February comes before 19th February on the timeline.

On 19th February 2024, it was wrong on the part of the respondent to instruct his counsel to state in her

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submissions that the “Oxus shares are worth nothing” because at that time, their fair market value was approximately \$0.5 million depending on which valuation model is used (Monte Carlo, Black Schole).

Lastly, and in order to pre-empt any future useless and costly back-and-forth and waste of time, I would like to reiterate that the Lock-Up period has nothing to do with the value of the shares just in case the respondent is tempted to argue that he assigned a value of zero to the shares because of the Lock-Up period.

I attach in enclosures a timeline and the SEC Prospectus filed on 16 January 2024.

The Oxus shares are worth approximately \$0.5 million, and I would like to take this opportunity to tell the Court that this dishonest conduct is permeating everything in the financial remedies and despite my relentless work around the clock for four years, it is humanly impossible to unwind every single asset, bank account, tax computation, crypto wallet, etc...It is an impossible task, the resources are on his side and he controls the assets, the information, and the unknowns.

Date	SEC Document Type	Description of Document	Applicant's Comments
2021			
4/1/2021	Form S-1	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933. Oxus Acquisition Corp, a newly formed blank check company (SPAC) incorporated as a Cayman Island exempted company for the purpose of entering into a merger, share exchange, asset acquisition, share purchase, recapitalization, reorganization or other similar business combination with one or more businesses or entities, referred to as "Target Business". This form S-1 is the Draft Registration / preliminary prospectus for the IPO of the securities issued by Oxus. Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one-half of one warrant. Each whole warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share	
8/19/2021	Form S-1 (1st amendment)	Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one warrant. Each warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share, subject to adjustment as described herein. Each warrant will become exercisable 30 days after the completion of the initial business combination and will expire on the fifth anniversary of the completion of an initial business combination, or earlier upon redemption or liquidation.	
9/2/2021	Nasdaq Form 8-A 12 (b)	Registration of (i) Units, each consisting of one Class A ordinary share and one warrant, (ii) of Class A ordinary shares with par value of \$0.0001 per share, and Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of \$11.50.	
9/2/2021	SEC Notice of Effectiveness of Form S-1		
9/2/2021	Pursuant to SEC Rule 424 (b) (4)	PROSPECTUS	
02/09/2021 (reported 9 sept 2021)	Form 8-K	On 8 Sept 2021 the Cie raised \$150m in a public offering. A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was placed in a trust account established for the benefit of the Company's public shareholders (the "Trust Account"), with Continental acting as trustee.	
08-Sep-21	Form 8-K	On September 8, 2021, Oxus Acquisition Corp., a Cayman Islands exempted company (the "Company"), consummated its initial public offering (the "Offering") of 15,000,000 units (the "Units"). The Units were sold at an offering price of \$10.00 per Unit, generating gross proceeds of \$150,000,000. Simultaneously with the consummation of the Offering, Oxus completed a private placement of an aggregate of 8,400,000 warrants (the "Private Placement Warrants") at a price of \$1.00 per Private Placement Warrant, generating gross proceeds of \$8,400,000 (the "Private Placement"). A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was deposited in a trust account established for the benefit of the Company's public shareholders. On September 9, 2021, the underwriters notified the Company of their exercise of the over-allotment option in full and purchased 2,250,000 additional Units at \$10.00 per Unit upon the closing of the over-allotment option, generating gross proceeds of \$22,500,000	
2022			
01/06/2022	SEC-Form 8-K	Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	

Date	SEC Document Type	Description of Document	Applicant's Comments
03/06/2022	Exhibit 24.1 to SEC-Form 8-K	Karim Zahmoul causes POA to be executed KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its hue and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority; 2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and 4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and contingent compensation.
06/06/2022	SEC-Form 8-K Current Report	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
06/06/2022	Letter from HFC to Withers	<i>My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed.'</i>	Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.
06/06/2022	Letter from HFC to Withers	<i>My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are.'</i>	Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.
07/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
09/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. SEC-Form 3 Files Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
17/06/2022	Yahoo Finance	OXUS Shares @ \$9.99 per Share; Current Enterprise Value of 215.36 Million	Increase in Net Worth of \$500,000 despite claim that he "may receive shares in the company subject to its performance." This is not a performance bonus, this is a joining bonus and it is not contingent on performance benchmarks.
2023			
23/02/2023	Reg FD	Business Combination Agreement. On February 24, 2023, Oxus Acquisition Corp. and Borealis Foods Inc., a corporation incorporated under the laws of Canada, jointly issued a press release announcing the execution of a business combination agreement on February 23, 2023	

Date	SEC Document Type	Description of Document	Applicant's Comments
03/03/2023	SEC-Form 8-K	EXTRAORDINARY GENERAL MEETING. On March 3, 2023, in connection with the Extraordinary General Meeting, Oxus filed an amendment (the "Charter Amendment") to the Company's Amended and Restated Memorandum and Articles of Association (the "Charter") with the Registrar of Companies in the Cayman Islands to (1) extend the date by which the Company must consummate its initial business combination from March 8, 2023 to December 8, 2023 , or such earlier date as determined by the Company's board of directors (the "Extended Date") and (2) provide for the right of a holder of Class B ordinary shares of the Company to convert into Class A ordinary shares on a one-for-one basis prior to the closing of a business combination at the election of such holder. The Company's shareholders approved the Charter Amendment at the Extraordinary General Meeting on March 2, 2023.	
14/08/2023	SEC-Form S-4	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933 PROXY STATEMENT AND PROSPECTUS	
13/11/2023	SEC-Form S-4 (2nd amendment)	BENEFICIAL OWNERSHIP OF DIRECTORS: The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,657,500 based on the closing price of Class A Shares of \$11.05 on the Nasdaq on October 17, 2023. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares; LOCK-UP AGREEMENTS: In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.	
2024			
16/01/2024	Proxy Statement and Prospectus	See Summary of Key Points	
07/02/2024	Form 8-K	CLOSING OF BUSINESS COMBINATION: On February 7, 2024 (the "Closing Date"), Borealis Foods Inc., a corporation incorporated under the laws of Canada ("Borealis"), Oxus Acquisition Corp., a Cayman Islands exempted company ("Oxus"), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus ("Newco"), consummated the transactions (collectively, the "Transaction") contemplated by the Business Combination Agreement, dated as of February 23, 2023, EXCHANGE RATE OF EQUITY. Upon the closing of the Transaction, the following occurred: The common shares of Borealis were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) \$150,000,000 minus Borealis' Closing Net Indebtedness, as agreed to by the parties, of \$17,000,000, which equals \$133,000,000, divided by (b) \$10.00 (the "Aggregate Transaction Consideration"). Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation. As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the "ProIndustry Regulatory Authority);	
08/02/2024	NASDAQ Press Release	Borealis Foods Inc commenced trading on the Nasdaq under the ticker symbol "BRLS" on February 8, 2024.	

EDGAR Entity Landing Page

Form type	Form description	Filing date	Reporting date
4	Statement of changes in beneficial ownership of securities	2024-02-29	2024-02-28
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-14	
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2024-02-13	
4	Statement of changes in beneficial ownership of securities	2024-02-13	2024-02-09
3	Initial statement of beneficial ownership of securities	2024-02-13	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-13	
8-K	Current report	2024-02-13	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-13	
4	Statement of changes in beneficial ownership of securities	2024-02-09	2024-02-07
4	Statement of changes in beneficial ownership of securities	2024-02-09	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-09	
25-NSE	Notification filed by national security exchange to report the removal from listing and registration of matured, redeemed or retired securities	2024-02-07	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-07	
425	Prospectuses and communications, business combinations	2024-02-02	

8-K	Current report	2024-02-02	2024-02-02
425	Prospectuses and communications, business combinations	2024-01-17	
EFFECT	Notice of Effectiveness	2024-01-16	
424B3	Prospectus [Rule 424(b)(3)]	2024-01-16	
CORRESP	Correspondence	2024-01-12	
S-4/A	Registration of securities, business combinations - amendment	2024-01-12	
S-4/A	Registration of securities, business combinations - amendment	2024-01-05	
S-4/A	Registration of securities, business combinations - amendment	2023-12-26	
CORRESP	Correspondence	2023-12-22	
8-K	Current report	2023-12-07	2023-12-05
UPLOAD	SEC-generated letter	2023-11-24	
DEF 14A	Other definitive proxy statements	2023-11-20	2023-12-05
10-Q	Quarterly report [Sections 13 or 15(d)]	2023-11-20	2023-09-30
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-11-14	2023-09-30
CORRESP	Correspondence	2023-11-13	
S-4/A	Registration of securities, business combinations - amendment	2023-11-13	
UPLOAD	SEC-generated letter	2023-11-09	
PRE 14A	Other preliminary proxy statements	2023-11-08	2023-11-07
S-4/A	Registration of securities, business combinations - amendment	2023-10-24	
CORRESP	Correspondence	2023-10-23	
8-K	Current report	2023-10-06	2023-10-02
UPLOAD	SEC-generated letter	2023-09-11	
10-Q	Quarterly report [Sections 13 or 15(d)]	2023-08-18	2023-06-30
425	Prospectuses and communications, business combinations	2023-08-17	
8-K	Current report	2023-08-17	2023-08-11
425	Prospectuses and communications, business combinations	2023-08-16	
8-K	Current report	2023-08-16	2023-08-16
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-08-15	2023-06-30
S-4	Registration of securities, business combinations	2023-08-14	
8-K	Current report	2023-06-13	2023-06-12

10-Q	Quarterly report [Sections 13 or 15(d)]	2023-05-22	2023-03-31
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-05-12	2023-03-31
4	Statement of changes in beneficial ownership of securities	2023-04-14	2023-04-12
8-K	Current report	2023-04-12	2023-04-05
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-04-11	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-04-05	
3	Initial statement of beneficial ownership of securities	2023-04-05	2023-03-31
10-K	Annual report [Section 13 and 15(d), not S-K Item 405]	2023-03-31	2022-12-31
425	Prospectuses and communications, business combinations	2023-03-03	
8-K	Current report	2023-03-03	2023-03-02
425	Prospectuses and communications, business combinations	2023-03-01	
8-K	Current report	2023-03-01	2023-02-23
425	Prospectuses and communications, business combinations	2023-02-28	
8-K	Current report	2023-02-28	2023-02-28
425	Prospectuses and communications, business combinations	2023-02-24	
8-K/A	Current report - amendment	2023-02-24	2023-02-23
8-K	Current report	2023-02-24	2023-02-23
425	Prospectuses and communications, business combinations	2023-02-24	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2023-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-02-13	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2023-02-10	
DEF 14A	Other definitive proxy statements	2023-02-10	2023-02-28
UPLOAD	SEC-generated letter	2023-02-09	
PRER14A	Preliminary Proxy Soliciting materials	2023-02-07	
PRE 14A	Other preliminary proxy statements	2023-01-30	2023-01-27
10-Q	Quarterly report [Sections 13 or 15(d)]	2022-11-14	2022-09-30
8-K	Current report	2022-09-14	2022-09-08
10-Q	Quarterly report [Sections 13 or 15(d)]	2022-08-02	2022-06-30
3	Initial statement of beneficial ownership of securities	2022-06-09	2022-06-07
8-K	Current report	2022-06-06	2022-05-31

10-Q	Quarterly report [Sections 13 or 15(d)]	2022-05-23	2022-03-31
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2022-05-16	2022-03-31
10-K	Annual report [Section 13 and 15(d), not S-K Item 405]	2022-03-31	2021-12-31
4	Statement of changes in beneficial ownership of securities	2022-03-10	2022-03-09
3	Initial statement of beneficial ownership of securities	2022-03-09	2022-03-09
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2022-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-10	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-03	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2021-12-13	
10-Q	Quarterly report [Sections 13 or 15(d)]	2021-11-15	2021-09-30
SC 13G	Statement of acquisition of beneficial ownership by individuals	2021-09-20	
8-K	Current report	2021-09-15	2021-09-08
8-K	Current report	2021-09-09	2021-09-02
424B4	Prospectus [Rule 424(b)(4)]	2021-09-07	
EFFECT	Notice of Effectiveness	2021-09-02	
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
CERT	Form - CERT	2021-09-02	
8-A12B	Registration of securities [Section 12(b)]	2021-09-02	
CORRESP	Correspondence	2021-08-31	
CORRESP	Correspondence	2021-08-31	
CORRESP	Correspondence	2021-08-19	
S-1/A	General form for registration of securities under the Securities Act of 1933 - amendment	2021-08-19	
UPLOAD	SEC-generated letter	2021-08-12	
S-1	General form for registration of securities under the Securities Act of 1933	2021-07-27	

CORRESP	Correspondence	2021-07-26	
UPLOAD	SEC-generated letter	2021-04-29	
DRS	Draft Registration Statement	2021-04-02	

OXUS ACQUISITION CORP. (excerpts)

300/26 Dostyk Avenue

Almaty, Kazakhstan 050020

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The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;

- the fact that given the differential in the purchase price that the Sponsor paid for the Founder Shares as compared to the price of the Public Units sold in the IPO and the substantial number of Class A Shares that the Sponsor will receive upon conversion of the Founder Shares in connection with the Business Combination, **the Sponsor may earn a positive rate of return on their investment even if the Class A Shares trade below the price initially paid for the Public Units in the IPO** and the public shareholders experience a negative rate of return following the completion of the Business Combination;

PAGE 43: Lock-Up Agreements

In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.

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Directors and Officers

The below lists Oxus' current officers and directors.

Name	Age	Title
Kenges Rakishev	44	Non-executive Chairman and Director
Kanat Mynzhanov	40	Chief Executive Officer and Director
Askar Mametov	40	Chief Financial Officer
Christophe Charlier	51	Director
Karim Zahmoul	58	Director
Shiv Vikram Khemka	61	Director

Karim Zahmoul has served as one of Oxus' independent directors since June 2022. Mr. Zahmoul has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm's international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College.

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Number and Terms of Office of Officers and Directors

The Oxus Board consists of five members. The Oxus Board is divided into three classes, with only one class of directors being elected in each year, and with each class (except for those directors appointed prior to Oxus' first annual meeting of stockholders) serving a three-year term. The term of office of the first class of directors, consisting of **Karim Zahmoul**, will expire at Oxus' first annual meeting of shareholders. The term of office of the second class of directors, consisting of Christophe Charlier and Shiv Vikram Khemka, will expire at Oxus' second annual meeting of

shareholders. The term of office of the third class of directors, consisting of Kenges Rakishev and Kanat Mynzhanov, will expire at Oxus' third annual meeting of shareholders.

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Audit Committee

Oxus gas established an audit committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The audit committee's duties, which are specified in Oxus' Audit Committee Charter, include, but are not limited to:

- reviewing and discussing with management and the independent auditor the annual audited financial statements, and recommending to the board whether the audited financial statements should be included in Oxus' Form 10-K;
- discussing with management and the independent auditor significant financial reporting issues and judgments made in connection with the preparation of Oxus' financial statements;
- discussing with management major risk assessment and risk management policies;
- discussing with management major risk assessment and risk management policies;
- monitoring the independence of the independent auditor;
- verifying the rotation of the lead (or coordinating) audit partner having primary responsibility for the audit and the audit partner responsible for reviewing the audit as required by law;
- reviewing and approving all related party transactions;
- inquiring and discussing with management Oxus' compliance with applicable laws and regulations;
- pre-approving all audit services and permitted non-audit services to be performed by Oxus' independent auditor, including the fees and terms of the services to be performed;
- appointing or replacing the independent auditor;
- determining the compensation and oversight of the work of the independent auditor (including resolution of disagreements between management and the independent auditor regarding financial reporting) for the purpose of preparing or issuing an audit report or related work;
- establishing procedures for the receipt, retention and treatment of complaints received by Oxus regarding accounting, internal accounting controls or reports which raise material issues regarding Oxus' financial statements or accounting policies; and

- approving reimbursement of expenses incurred by Oxus' management team in identifying potential target businesses.

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Financial Experts on Audit Committee

The audit committee will at all times be composed exclusively of "independent directors" who are "financially literate" as defined under the Nasdaq's listing standards. The Nasdaq's standards define "financially literate" as being able to read and understand fundamental financial statements, including a company's balance sheet, income statement and cash flow statement.

In addition, Oxus must certify to the Nasdaq that the committee has, and will continue to have, at least one member who has past employment experience in finance or accounting, requisite professional certification in accounting, or other comparable experience or background that results in the individual's financial sophistication. The board of directors has determined that Christophe Charlier qualifies as an "audit committee financial expert," as defined under rules and regulations of the SEC.

Nominating Committee

Oxus has established a nominating committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The nominating committee is responsible for overseeing the selection of persons to be nominated to serve on the Oxus Board. The nominating committee considers persons identified by its members, management, shareholders, investment bankers and others.

Guidelines for Selecting Director Nominees

The guidelines for selecting nominees, which are specified in the Nominating Committee Charter, generally provide those persons to be nominated:

- **should have demonstrated notable or significant achievements in business, education or public service;**
- should possess the requisite intelligence, education and experience to make a significant contribution to the board of directors and bring a range of skills, diverse perspectives and backgrounds to its deliberations; and
- **should have the highest ethical standards, a strong sense of professionalism and intense dedication to serving the interests of the shareholders.**

The Nominating Committee will consider a number of qualifications relating to management and leadership experience, background and integrity and professionalism in evaluating a person's candidacy for membership on the board of directors. The nominating committee may require certain skills or attributes, such as financial or accounting experience, to meet specific board needs that arise from time to time and will also consider the overall experience and makeup of its

members to obtain a broad and diverse mix of board members. The nominating committee does not distinguish among nominees recommended by shareholders and other persons.

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Compensation Committee

Oxus has established a compensation committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The compensation committee's duties, which are specified in Oxus' Compensation Committee Charter, include, but are not limited to:

- reviewing and approving on an annual basis the corporate goals and objectives relevant to Oxus' Chief Executive Officer's compensation, evaluating Oxus' Chief Executive Officer's performance in light of such goals and objectives and determining and approving the remuneration (if any) of Oxus' Chief Executive Officer based on such evaluation;
- reviewing and approving the compensation of all of Oxus' other executive officers;
- reviewing Oxus' executive compensation policies and plans;
- implementing and administering Oxus' incentive compensation equity-based remuneration plans;
- assisting management in complying with Oxus' proxy statement and annual report disclosure requirements;

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- approving all special perquisites, special cash payments and other special compensation and benefit arrangements for Oxus' executive officers and employees;
- if required, producing a report on executive compensation to be included in Oxus' annual proxy statement; and
- reviewing, evaluating and recommending changes, if appropriate, to the remuneration for directors.

Code of Ethics

Oxus has adopted a code of ethics that applies to all of Oxus' executive officers, directors and employees. The code of ethics codifies the business and ethical principles that govern all aspects of Oxus' business.

Legal Proceedings

As of the date of this proxy statement/prospectus, to the knowledge of Oxus' management, there was no material litigation, arbitration or governmental proceeding pending against Oxus or any

members of Oxus' management team in their capacity as such, and Oxus and the members of Oxus' management team have not been subject to any such proceeding.

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Unless otherwise indicated, Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. **The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus.** The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd. ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—

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Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*

Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)						
	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.
- (2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company (“Meteora Capital”) with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the “Meteora Funds”); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the “Funds”), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the “Adviser”). Ari Glass is the Managing Member of the Adviser. Certain subadvisors (“Subadvisors”) have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.
- (11) Does not include shares to be transferred by the Sponsor pursuant to the incentive agreements upon successful completion of the Business Combination.
- (12) Represents securities held by Belphar. Ltd., of which Shukhrat Ibragimov is the controlling shareholder.

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On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or**

\$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.